

22 Rights and freedoms (1945 to present)

22.1 Overview

Numerous **videos** and **interactivities** are embedded just where you need them, at the point of learning, in your learnON title at www.jacplus.com.au. They will help you to learn the content and concepts covered in this topic.

Aboriginal and Torres Strait Islander readers are advised that this topic may contain images of and references to people who have died.

What does it take to change the hearts and minds of a nation, so they don't just tolerate the First Nations population but respect and value them?

22.1.1 Links with our times

It was 1971 — 70 years after Federation — before Australia elected its first Aboriginal parliamentarian, Neville Bonner. After the 2019 federal election, a small group of Aboriginal and Torres Strait Islander representatives, which included Linda Burney, the first ATSI woman to win a House of Representatives seat, and Senators Ken Wyatt, Pat Dodson and Malarndirri McCarthy, took their place in Australia's forty-sixth parliament.

Some states have either begun to or have already enacted their own forms of treaties or settlements with Aboriginal and Torres Strait Islander peoples, but discussions on a federal level stalled considerably in the early twenty-first century.

SOURCE 1 Linda Burney, the first Aboriginal woman to win a House of Representatives seat, lays a wreath at Redfern Park honouring First Nations servicemen and women.



Resources



eWorkbook

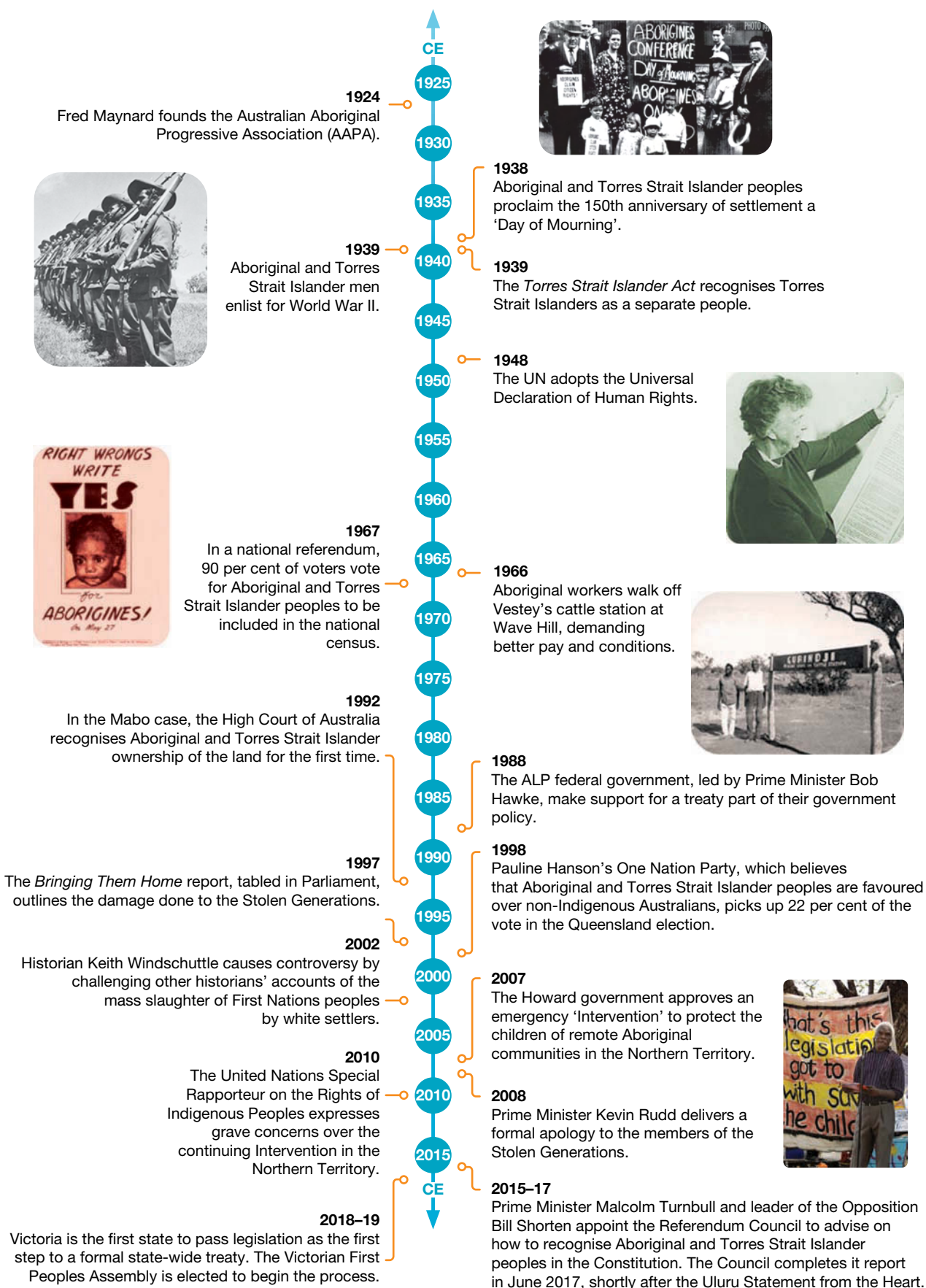
Customisable worksheets for this topic (ewbk-6373)



Video eLesson

Rights and freedoms (eles-2605)

SOURCE 2 A timeline of the struggle for rights and freedoms (1945–present)



22.2 Examining the evidence

LEARNING INTENTION

By the end of this subtopic you will be able to explain why and how the voices of First Nations peoples in Australia were marginalised, and identify the limitations of viewing history from only one perspective.

22.2.1 How do we know about Aboriginal and Torres Strait Islander peoples' struggle for rights and freedoms?

Until the latter half of the twentieth century the voices of **Australia's First Peoples** were noticeably absent from discussions about Australian history. Today it is possible to access reports, commentary and stories that encompass a wide range of Indigenous experiences. Many of these focus on the struggle for rights and freedoms.

The views of non-Indigenous people about Aboriginal and Torres Strait Islander peoples' experiences can only ever be second-hand. To find primary evidence about what it is like to be a First Nations person in Australia, we must ask and listen to Aboriginal and Torres Strait Islander peoples. Not all Aboriginal and Torres Strait Islander perspectives on the fight for rights and freedoms relate to times past; some fights, such as land rights and the fight for equality, continue to this day. Similarly, not all First Nations peoples had or have the same experiences. The considerable number of cultures, language groups and timelines of colonisation make the discussion of these struggles very complex and often painful. Stories of lived experiences also add to our understanding of this complex issue, and play a significant part in allowing the voices Aboriginal and Torres Strait Islander peoples to be heard.

SOURCE 1 In 1999, at the 50th Anniversary of Australian Citizenship Conference, ATSIC Commissioner Colin Dillon, a Kumbumerri Elder of the Yugambah Nation, talked about his experience as a police officer during the mid 1960s.

On entering police training in 1965, two years before the referendum, I found it frightening to realise that I was the only Aboriginal person on the police force. The only others were the Black Trackers, universally regarded as inferior with no police powers.

It was conveyed to me — informally but very bluntly — that I had entered the wrong profession, that there was no place for a black man as a sworn officer in an all-white police force. I persevered and endured the **unfettered** racism and hard training and was eventually formally sworn in as a Constable.

Yet even as I stood in the parade that day for the ceremonial swearing in of constables — a moment that should have been the proudest in my life — I remember the Commissioner as he made his inspection. On coming to me he commented to the parade Sergeant 'He's a bit on the dark side'.

My troubles continued — not only was I not wanted within the police force but my chosen profession and its associated tasks **alienated** me from my own people. Even the enactment of the Racial Discrimination Act in 1975 offered no respite, as it would have been sheer **folly** to formally complain in a work environment that quite openly tolerated racial and discriminatory practices.

Popular films

Although Aboriginal and Torres Strait Islander peoples have been depicted in films since the 1920s, many early portrayals were stereotypical and ill-informed. By the mid 1950s a slightly different portrayal emerged in *Jedda*, in which an Aboriginal girl raised by a white family seeks to discover her culture. In the 1970s, films such as *Walkabout* and *Stormboy* depicted Aboriginal people as helpful and knowledgeable about the land. In 1978 Muruwari filmmaker Essie Coffey released *My Life as an Aboriginal*, in which she demonstrated the differences between Aboriginal knowledge and the kind of education that Aboriginal children were getting in school. Coffey's film raised awareness about the number of First Nations children losing touch

Australia's First Peoples (or First Nations peoples) an inclusive term used to refer to groups that make up the Aboriginal and Torres Strait Islander communities

unfettered unrestricted

alienate to cause someone to feel isolated or separated

folly foolishness; lack of good sense

with their **heritage**. Since the 1980s, depictions of Aboriginal and Torres Strait Islander peoples on screen have been somewhat more well rounded, while films such as *Rabbit-Proof Fence* (2002) and documentaries such as *First Australians* (2008) have explored the difficult and often violent struggle for survival that Aboriginal and Torres Strait Islander peoples have endured. The 2006 movie *Ten Canoes* used only Aboriginal languages to tell its story. Providing a valuable reference point to imagine what life may have been like before European colonisation irrevocably changed First Nations cultures.

Political and other commentary

Since Australia was colonised, politicians have been involved in designing policies concerning Aboriginal and Torres Strait Islander peoples. The means by which they have justified these policies in parliament and in the press has led to commentary by political insiders, journalists and cartoonists. It is a commentator's job to cut through the **rhetoric**, highlighting important or controversial aspects of the politicians' positions in a way that will be accessible to the public.

Aboriginal and Torres Strait Islander leaders such as Noel Pearson and Pat Dodson, along with educators such as Marcia Langton and Chris Sara, have been influential in contributing to this commentary. Other individuals such as actor Leah Purcell, filmmaker Rachel Perkins and visual artist Vernon Ah Kee present their commentary in artistic forms.

Official documentation

The international fight for rights and freedoms was formalised in 1948 with the signing of the United Nations' Universal Declaration of Human Rights by Australia and many other countries. Today the UN reports on the degree to which countries are adhering to the Declaration. A negative assessment from the United Nations carries great weight within the international community.

SOURCE 2 Many First Nations children, particularly those with one European parent, were forcibly removed from their families, and raised in institutions or by white families. The film *Rabbit-Proof Fence* (2002) tells the story of three such children, Mollie, Gracie and Daisy, in Western Australia.



SOURCE 3 Throughout his prime ministership, John Howard adhered to a positive view of Australian history and refused to acknowledge the pain caused to First Nations peoples by previous governments, particularly in relation to the Stolen Generations.



heritage important or enduring
rhetoric effective and persuasive language, sometimes used to mislead

SOURCE 4 In 2010 the UN's Special Rapporteur on the Rights of Indigenous Peoples, James Anaya, finished an 11-day tour of Australia. While he praised certain aspects of Australian government policy, he was highly critical of the ongoing intervention (see section 22.12).

During my time in Australia, I have been impressed with demonstrations of strong and vibrant Indigenous cultures and have been inspired by the strength, resilience and vision of Indigenous communities determined to move toward a better future despite having endured tremendous suffering at the hands of historical forces and entrenched racism. It is clear that these historical forces continue to make their presence known today, manifesting themselves in serious disparities between Indigenous and non-Indigenous parts of society, including in terms of life expectancy, basic health, education, unemployment, **incarceration**, children placed under care and protection orders, and access to basic services.

Given these disparities, the Government has developed and implemented a number of important initiatives in order to 'close the gap' of Indigenous disadvantage within a wide range of social and economic areas, with a stated emphasis on women and children, and these programmes must continue to be improved and strengthened ... Aspects of the Government's initiatives to remedy situations of Indigenous disadvantage, however, raise concerns. Of particular concern is the Northern Territory Emergency Response.

incarceration imprisonment

22.2 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways.

LEVEL 1

Questions
1, 2, 6

LEVEL 2

Questions
3, 4, 8, 9

LEVEL 3

Questions
5, 7, 10

Check your understanding

1. These days, we have access to a range of primary and secondary sources to better understand First Nations experiences. Identify whether the following are primary or secondary sources.
 - a. Official reports
 - b. Media commentary
 - c. Aboriginal and Torres Strait Islander peoples' stories
2. What are the strengths and limitations of the views of non-Indigenous Australians, such as journalists and academics, about the experience of Australia's First Peoples?
3. In what way could the film *Jedda* be seen as a 'turning point' in the depiction of First Nations peoples on screen?
4. Explain the role of a political commentator in your own words.
5. What role does the United Nations play in monitoring the treatment of First Nations peoples?

Apply your understanding

6. **SOURCE 1** presents an Aboriginal perspective on a particular event — the swearing-in ceremony for police constables. Why would you regard **SOURCE 1** as a primary source? What might be its strengths and weaknesses as a historical source?
7. What primary sources do you think the producers of *Rabbit-Proof Fence* (see **SOURCE 2**) would have consulted when making the film? What different biases do you think such filmmakers would need to guard against to ensure their depiction of events was factual?
8. What statement is the cartoonist trying to make in **SOURCE 3**? What images support this message? Is it an effective statement? Why or why not?
9. In **SOURCE 4**, UN representative James Anaya praises certain aspects of Australia's treatment of Aboriginal and Torres Strait Islander peoples and criticises others. What are they?
10. What primary and secondary sources do you imagine that James Anaya, the author of **SOURCE 4**, would have taken into account before making his determination and recommendations to the United Nations?

For sample responses to every question, go to www.jacplus.com.au.

22.3 The beginnings of an Aboriginal protest movement

LEARNING INTENTION

By the end of this subtopic you will be able to identify and explain the similarities and differences in the demands for rights and freedoms made by Aboriginal advocacy groups from 1920 onwards.

22.3.1 Protests during the 1920s

When Captain James Cook claimed Australia's east coast on behalf of Britain in 1770, the principle of *terra nullius* that was applied meant that no treaty was ever made with Australia's First Peoples. The arrival of the First Fleet in Sydney Cove on 26 January 1788 marked the beginning of settlement (from a European perspective) or, from a First Nations' perspective, the invasion of a land they had lived in continuously for tens of thousands of years. Early protests in the first century and a half of European control were suppressed by the Europeans' legal and social systems, which recognised neither First Nations laws and customs nor their custodianship of the land.

The first Aboriginal political organisations were formed in the 1920s. Foremost among these was the Australian Aboriginal Progressive Association (AAPA) formed by Fred Maynard in New South Wales in 1924. Maynard had been inspired by black activists in the United States. At the forefront of the Association's goals was the right for Aboriginal self-determination, including a right to land and an end to children being forcibly removed from their families. Street rallies, well publicised meetings, letter writing campaigns and petitions gained public attention. Jane Duren, a member of the Association, wrote a letter to King George V about conditions for Aboriginal people. In 1927, Fred Maynard wrote a letter of protest to the Premier of New South Wales, Jack Lang, calling for the restitution of Aboriginal land (see **SOURCE 1**). By late 1927, the Association had disbanded after a concerted campaign against Maynard and the Association by the New South Wales Aboriginal Protection Board, which administered the *Aborigines Protection Act 1909*.

SOURCE 1 Fred Maynard's letter of protest to the New South Wales Premier in 1927

I wish to make it perfectly clear on behalf of our people, that we accept no condition of inferiority as compared with European people. Two distinct civilisations are represented by the respective races ... That the European people by the arts of war destroyed our more ancient civilisation is freely admitted, and that by their vices and diseases our people have been decimated is also patent. But neither of these facts are evidence of superiority. Quite the contrary is the case. Furthermore, I may refer in passing, to the fact that your present scheme of old age pensions was obtained from our more ancient code, as likewise your child endowment scheme and widows pensions. Our divorce laws may yet find a place on the Statute Book. The members of the Board [the AAPA] have also noticed the strenuous efforts of the trade union leaders to attain the conditions which existed in our country at the time of the invasion by Europeans — the men only worked when necessary, we called no man 'master' and we had no king. We are therefore, striving to obtain full recognition of our citizen rights on terms of absolute equality with all other people in our land. The request made by this Association for sufficient land for each eligible family is justly based. The Australian people are the original owners of this land and have a prior right over all other people in this respect. Our request to supervise our own affairs is no innovation. The Catholic people in our country possess the right to control their own schools and homes, and take pride in the fact that they possess this privilege. The Chinese, Greeks, Jews and Lutherans are similarly favoured and our people are entitled to precisely the same conditions.

22.3.2 A day of mourning

In an echo of the earlier AAPA, in 1937 the Aborigines Progressive Association (APA) was formed in New South Wales with three main aims: full citizenship rights for Aboriginal and Torres Strait Islander peoples, representation in parliament

terra nullius ('land belonging to no-one') in Australia, the legal idea that since no-one was 'using' the land when the first Europeans arrived, it could be claimed by the British Crown

and abolition of the New South Wales Aboriginal Protection Board. For the newly formed Association, Australia Day 1938 became a focus for action. The 150th anniversary of the day Captain Arthur Phillip planted the British flag at Port Jackson was 26 January 1938. All six state premiers had arrived in Sydney; the finishing touches were being put on 120 street floats and the crowds were gathering as the city prepared for a spectacular show. Having been denied access to Sydney Town Hall, activists and community members, led by William Cooper and Jack Patten, walked in silent protest to Australia Hall, which they had to enter via the back door. So began Australia Day 1938: for the country's white population, this was a day to celebrate; for Australia's First Peoples it was a day of mourning.

SOURCE 2 As dignitaries watched on, people, brought to Sydney especially for the event, re-enacted the landing of the First Fleet at Farm Cove in 1938.



Source: Mitchell Library, State Library of NSW. Call no. Home & Away – 17963.

SOURCE 3 The Day of Mourning: two of the day's organisers, William Ferguson and Jack Patten, are pictured at far left and right, respectively.



News Ltd / Newspix.

DID YOU KNOW?

The First Nations peoples brought by the federal government from country New South Wales as forced participants in a re-enactment ceremony were kept locked in the stables at the Redfern police station until the ceremony.

Building a movement

In the months leading up to January 1938, Jack Patten, the first president of the APA, and William Cooper, secretary for the Australian Aborigines League, had visited missions and reserves to gain support for the Day of Mourning protest. Patten had also worked with William Ferguson, founder of the APA, to put together a 12-page document entitled 'Aborigines claim citizenship rights', which ran in many national newspapers. Despite widespread support for the event within the Aboriginal community, only about 100 people attended because Australian law forbade Aboriginal people from gathering to protest. Despite the printed warning that 'Aborigines and persons of Aboriginal blood only are invited to attend', four non-Aboriginal people attended the gathering. Two were police officers; the others were representatives from *Man Magazine*, who would document the day's events for a story entitled 'Aborigines meet, mourn while white-man nation celebrates'.

22.3.3 Results of the Day of Mourning

As the Day of Mourning protest began, telegrams of support from around Australia were read out. Then Jack Patten read the following resolution (see **SOURCE 4**):

We, representing the Aborigines of Australia ... on the ... 150th anniversary of the whitemen's seizure of our country, hereby make protest against the callous treatment of our people ... and we appeal to the Australia nation of today ... for ... full citizen status and equality within the community.

SOURCE 4 APA President Jack Patten (right) reads the resolution.



Source: Mitchell Library, State Library of NSW. Call no. MLQ 059/9.

During the protest, the group discussed the brutal treatment of Aboriginal people by the Aboriginal Protection Board and the unfair removal of children from reserves, as well as the need for equal rights. The protest culminated in the formation and approval of a ten-point plan for equality. The plan outlined the importance of giving Aboriginal and Torres Strait Islander peoples full citizenship status, as well as access to education, health services and employment. The plan also demanded that Aboriginal and Torres Strait Islander peoples be allowed to own property, possess a bank account and receive a pension — rights automatically granted to Australian citizens. The day ended with members of the protest walking to La Perouse, one of the original landing spots for the First Fleet, where they released funeral wreaths into the sea.

Following the success of the Day of Mourning protest, a delegation of 20 people led by Jack Patten and William Ferguson presented the Australian Prime Minister, Joseph Lyons, with the ten-point plan for equality. Despite the prime minister's willingness to listen to the delegation, it would take another 30 years and another generation of activists before First Nations peoples would even be counted in the national census.

SOURCE 5 Following the Day of Mourning, Australia's Indigenous community began publishing its first newspaper, *Abo Call*, edited by Jack Patten.

To all Aborigines!

'The Abo Call' is our own paper.

It has been established to present the case for Aborigines, from the point of view of the Aborigines themselves.

This paper has nothing to do with missionaries, or anthropologists, or with anybody who looks down on Aborigines as an 'inferior' race.

We are NOT an inferior race, we have merely been refused the chance of education that whites receive. 'The Abo Call' will show that we do not want to go back to the Stone Age.

Representing 60 000 Full Bloods and 20 000 Halfcastes in Australia, we raise our voice to ask for Education, Equal Opportunity, and Full Citizen Rights.

'The Abo Call' will be published once a month. Price 3d [3 pence].

The Editor asks all Aborigines and Halfcastes to support the paper, by buying it and also by acting as agents for sale to white friends and supporters.

22.3 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways

LEVEL 1

Questions
1, 4, 7, 10, 14

LEVEL 2

Questions
2, 5, 8, 11, 12, 13, 15

LEVEL 3

Questions
3, 6, 9, 16, 17

Check your understanding

1. When was the Australian Aboriginal Progressive Association formed and by whom?
2. List the goals of the AAPA.
3. How did the AAPA attempt to achieve these goals?
4. How did the leaders of the Day of Mourning Protest build up support in the months leading up to January 1938?
5. How many people attended the Day of Mourning and why were the numbers low?
6. What examples of inequality between white Australians and Aboriginal Australians could be seen on Australia Day 1938?
7. Name three things that Aboriginal activists wanted the government to change in 1938.
8. What was the ten-point plan?
9. Why did Aboriginal activists release funeral wreaths into the sea following their protest?

Apply your understanding

10. Study **SOURCE 1** and answer the following questions.
 - a. What does Fred Maynard suggest is contrary evidence to the superiority of European people?
 - b. Who are the 'Australian people' referred to in this letter? How do you know this?
 - c. What arguments are presented for the rights of Aboriginal peoples to supervise their own affairs?
 - d. What assumptions might you make about the writer of this letter? Justify these.
11. Based on **SOURCES 2** and **3**, how did white Australia view Aboriginal Torres Strait Islander peoples in 1938? How did each group view themselves?
12. Examine the introduction to the *Abo Call* (see **SOURCE 5**) and answer the following questions.
 - a. What was the purpose of the paper? How can you tell?
 - b. In what ways did the *Abo Call* seek to challenge white preconceptions about Aboriginal and Torres Strait Islander peoples?
 - c. In what ways did it encourage Aboriginal and Torres Strait Islander peoples to think for themselves?
13. **SOURCES 2** and **4** show contrasting depictions of Aboriginal peoples. Comment on this contrast.
14. Examine **SOURCES 4** and **5**. Analyse what the main grievances (complaints) are that were felt by Jack Patten and his supporters and list them in dot points.
15. Describe why you think Aboriginal activists such as William Ferguson, William Cooper and Jack Patten decided to use the theme of 'mourning' for 26 January 1938. How else could they have presented their protest to create a different effect? Do you think this would have been more or less effective than the protest they made?
16. Identify what changes in politics and society you think would need to have taken place before Aboriginal and Torres Strait Islander peoples would be given citizenship. Are you surprised that gaining citizenship took almost 30 years after the Day of Mourning?
17. Based on what you have read in this subtopic, explore whether you consider the Day of Mourning a turning point for Aboriginal Australia. Write 150 words explaining your position.

For sample responses to every question, go to www.jacplus.com.au.

22.4 The Stolen Generations

LEARNING INTENTION

By the end of this subtopic you will be able to describe the hardships faced by members of the Stolen Generations, and explain the ways that these hardships continue to affect Aboriginal and Torres Strait Islander communities today.

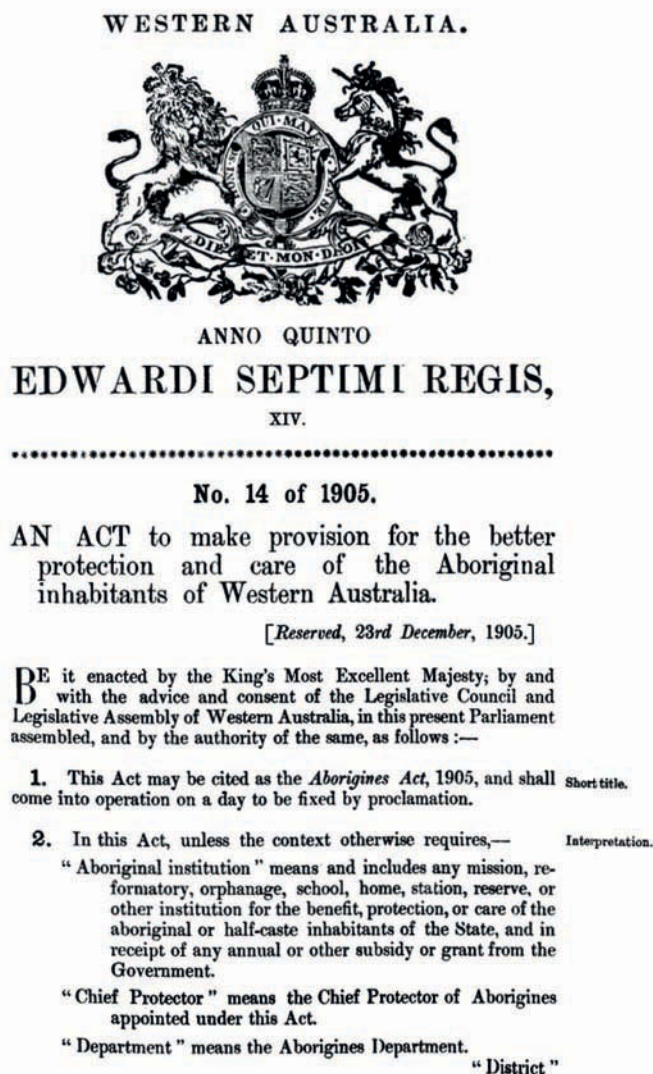
22.4.1 Government policy: from 'protection' to assimilation

During the 1800s the colonial authorities argued that a protection system was the best way to look after Aboriginal peoples. This often meant setting up special communities for them where they could farm the land and live off the produce. However, this forced change was completely foreign and did not fit Aboriginal culture or practices; it involved moving people from their Country, way of life and often their families.

After Federation in 1901, each state government was responsible for the Aboriginal and Torres Strait peoples within that state. In Western Australia, the *Aborigines Act 1905* was intended for 'the provision for the better protection and care of the Aboriginal inhabitants of Western Australia'. Under this legislation, the Minister for the Aborigines Department could force 'any aboriginal to be removed to and kept within the boundaries of a reserve, or to be removed from one reserve or district to another reserve or district, and kept therein'.

The Aborigines Department was established to provide food, clothing and medicine for Aboriginal peoples in Western Australia. This department was headed by the Chief Protector of Aborigines. The Chief Protector was also the legal guardian of every Aboriginal and mixed-race child under the age of 16 in Western Australia. Enforcing this legislation was left to 'protectors' who were usually police officers. Those children who were taken from their families are known as the 'Stolen Generations'.

SOURCE 1 Extract from the Western Australian *Aborigines Act 1905*



Source: Sourced from the Western Australian Legislation website on 22 July 2020. For the latest information on Western Australian legislation, visit www.legislation.wa.gov.au.

Governments believed the best way to ensure that First Nations children (especially those of mixed descent) were **assimilated** into European society was to remove them — forcibly, if necessary — from their families and raise them in institutions or foster homes. Paul Hasluck, who was appointed Federal Minister for Territories in 1951, articulated the thinking behind this strategy: ‘Assimilation means, in practical terms, that, in the course of time, it is expected that all persons of aboriginal blood or mixed blood in Australia will live like other white Australians do’.

The NSW *Child Welfare Act 1939* had provided parents with the right to contest the removal of their children. However, with many Children’s Courts located far from the Indigenous communities from which the children had been taken, and with no legal assistance provided for parents, it was extremely difficult for parents to get their children back. Once they had been removed, many Aboriginal and Torres Strait Islander children were exploited or abused, and were denied any contact with their families, Countries, cultures or languages. Between 1910 and 1970 it is estimated that 10–30 per cent of First Nations children were forcibly removed from their families in the name of assimilation. This means that many Aboriginal and Torres Strait Islander families, from every state and territory, were directly affected by the forced removal of one or more children.

SOURCE 2 An extract from the 1989 book *Wanamurraganya: The Story of Jack McPhee*. The narrator is being shown around a compound for Aboriginal children.

‘This part is called the compound,’ he told me, ‘there’s the church, sewing room, dormitories where they keep all the kids, store, you’ve seen the office and the hospital.’

‘Whose kids are they?’

‘Anybody’s. Some got their names changed. You know whitefellas, if they can’t get their tongue around your name they call you something else. No one be able to find these kids now.’

I was thinking to myself, to take a child from its mother is a cruel thing. The mother has given the life, suffered for it, it’s not right that life is taken from her.

‘When a family comes in,’ said Jack, ‘the kids live in dormitories, others down in the camp.’ ...

‘Jeez, Jack, is this a prison?’

He laughed. ‘Trackers here too. Bring you back if you run away.’

‘Can’t you do something?’

‘Who will listen, brother? Boss reads all the mail that goes out and comes in.’

22.4.2 Case study: Life in the Homes

At Kinchela Boys Home on the mid-north coast of New South Wales, Aboriginal boys were taught to farm the land and operate heavy machinery such as tractors. Between 1924 and 1970, 600 boys were taken to Kinchela, where they were stripped of their names and given numbers instead, were forbidden from speaking their own language and were severely punished by the staff for disobedience. According to Cecil Bowden, a former resident, the most brutal punishment was being sent ‘down the line’: ‘They’d have to walk the line and 60 or 70 boys would have to punch them, punch that person as hard as they could, just to satisfy those people who were running the home’.

The Cootamundra Domestic Training Home for Aboriginal Girls was the destination for generations of Aboriginal girls removed from their families between 1911 and 1969. The girls would stay at Cootamundra in the South West Slopes region of New South Wales until the age of 14, when they would be sent to work as domestic servants in the homes and farms of New South Wales’ middle class. Once in domestic service, many girls became pregnant, only to have their own children removed and placed with white families.

assimilation the process by which a minority group gives up its own customs and traditions and adopts those of the dominant culture

SOURCE 3 An extract from the *Bringing Them Home* report. Rose lost contact with her brothers and sisters in 1958, when she was 9 years old.

The kids was glad to see Mum and Dad at court. They were jumping all over them. Glad to see them. When the Welfare took the kids off Mum and Dad they were holding out their arms trying to stay with Mum and Dad. Everyone was crying sad. Sad. Sad.

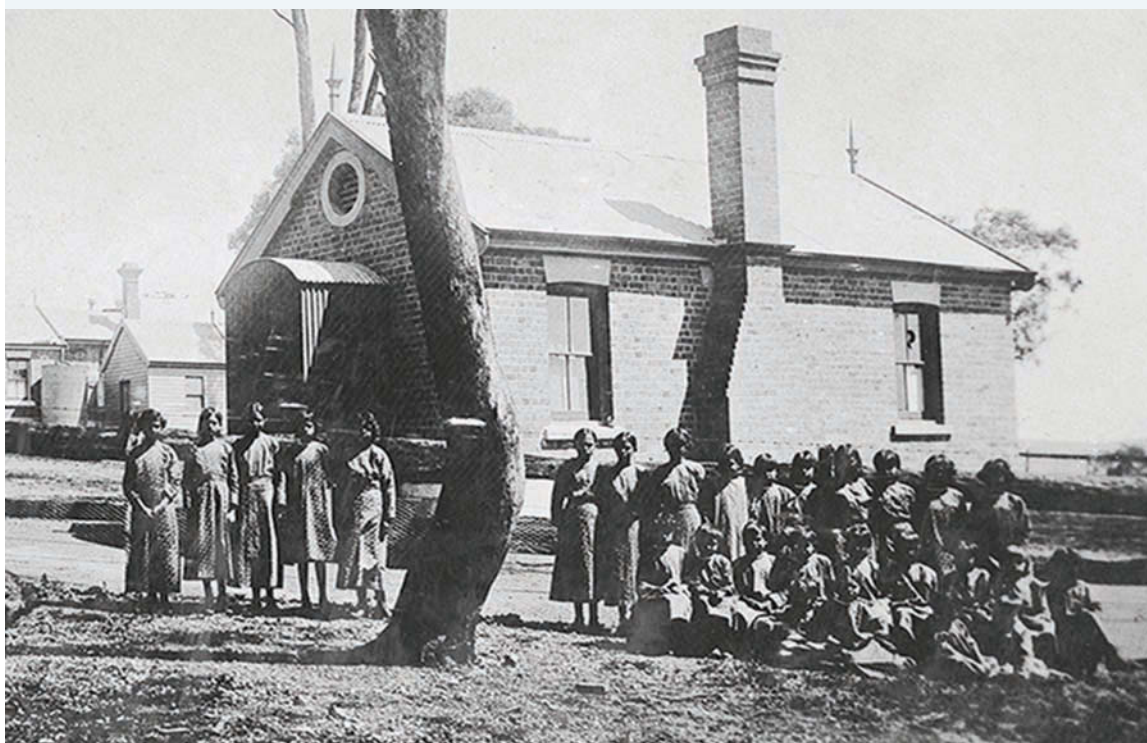
After the kids had gone to the home Mum and Dad hit the grog hard as they had done everything in their power and in their hearts to keep us away from the (predators) the Welfare. But they sniffed us out of the bush like dogs.

My parents couldn't handle the trauma of not having the closest warmth loving caring family we were. They separated. My Mum went one way; my Dad went his way.

And I was 9 years of age left to go my way. I didn't know anyone. So I lived with Koori families who took me in. And in return I would look after their kids while they went picking just so I had some sort of family caring. I done this for years. Still not knowing where my brothers and sisters were. I tried hard to find them but couldn't.

The families that took me in I have a lot of respect for them because they tried to mend a 9 year old's broken heart ...

SOURCE 4 Residents of the Cootamundra Domestic Training Home for Aboriginal Girls



on Resources

 **Weblink** Archival copy of the Aborigines Act 1905 (WA)
Stolen Generations (South West Aboriginal Land & Sea Council)

22.4 ACTIVITY

You have been asked to design a museum exhibit about the Stolen Generations in Western Australia. What objects will you include? Using your library and the internet for reference, either draw or collect pictures of your selected objects, together with a descriptive label explaining why each is significant.

HASS skills: Questioning and researching
History concepts: Significance, Sources

22.4 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways

LEVEL 1

Questions
1, 2, 3, 8, 9, 10

LEVEL 2

Questions
4, 5, 11, 12, 13

LEVEL 3

Questions
6, 7, 14, 15, 16

Check your understanding

1. What power did the Minister for the Aborigines Department have in WA?
2. Explain the concept of assimilation, in your own words.
3. What was the purpose of the assimilation strategy?
4. Why were Aboriginal children taken from their families? Give as many reasons as you can.
5. Why was it so difficult for Aboriginal parents to contest the removal of their children?
6. Using the information in this section, describe how boys and girls were treated once they were removed from their families.
7. Why do you think the estimated numbers of children removed from their families varies so markedly between one in three and one in ten?

Apply your understanding

8. **SOURCE 1** is the beginning of the Western Australia *Aborigines Act 1905*. After reading it carefully, what do you think the purpose of the Act was? What beliefs about Aboriginal peoples do you think the people who wrote the Act held?
9. It is the morning after four Aboriginal children have escaped from the compound described in **SOURCE 2**. What do you think might happen to the children still in the compound?
10. Study **SOURCE 3** and answer the following questions.
 - a. From the clues provided in Rose's story, why do you believe her brothers and sisters were removed?
 - b. Why do you think Rose may have been left behind?
 - c. Which people were directly or indirectly affected in a negative way by the welfare workers' decision to remove Rose's brothers and sisters from the family?
11. The girls pictured in **SOURCE 4** were being prepared specifically for domestic work. What does this suggest about the sorts of jobs that the Aboriginal Protection Board believed Aboriginal children were best suited for?
12. Evaluate the usefulness of using individual stories such as **SOURCE 2** and **SOURCE 3** as evidence to assist our understanding of the impact of the government policy of child removal on Indigenous peoples.
13. Do **SOURCES 2, 3** and **4** offer support for each other? Explain your answer fully.
14. Use a fishbone diagram to identify the causes of why children were 'stolen' and the consequent effects.
15. Identify who you think were more fortunate, the girls in Cootamundra or the girls left behind, such as Rose (**SOURCE 3**)? Explain your view, using information and quotes from this subtopic.
16. Imagine you are a 9-year-old Aboriginal or Torres Strait Islander girl or boy and have just been taken into the custody of the state. Which would be hardest to leave behind: your family, your language or your culture? Explain your choice.

For sample responses to every question, go to www.jacplus.com.au.

22.5 Influence on Australia of civil rights movements abroad

LEARNING INTENTION

By the end of this subtopic you will be able to:

- identify some of the major figures in the world's civil rights movements during the early to mid twentieth century
- identify explain the term 'non-violent protest'
- outline why this form of protest was so successful for activists.

22.5.1 International call for civil rights

In the 1940s, many of the rights and freedoms enjoyed by white people in settler nations such as the United States and Australia were not shared by the nations' minorities. To many people this seemed wrong, but it would be the mid 1950s before leaders would emerge to challenge this widespread inequity and mistreatment. They were part of the civil rights movement. This movement would build during the 1960s, generating a worldwide demand for change.

On 10 December 1948 the United Nations General Assembly adopted the Universal Declaration of Human Rights (UDHR), an international agreement that outlined the rights and freedoms that should be accorded to all people. As a founding member of the UN, Australia played a prominent role in establishing the Declaration under the guidance of Dr Herbert Vere Evatt, who became the president of the United Nations General Assembly in 1948. Dr Evatt, a former High Court judge, Attorney General and Minister for External Affairs, was known for defending civil liberties. The Declaration began by recognising that 'the inherent dignity and the equal and **inalienable** rights of all members of the human family is the foundation of freedom, justice and peace in the world'. Although it was not a **treaty**, the Declaration was seen as an international call for civil rights.

SOURCE 1 A photograph of Eleanor Roosevelt holding the Universal Declaration of Human Rights



SOURCE 2 Eleanor Roosevelt became the First Lady of the United States when her husband, Franklin Delano Roosevelt, was elected president in 1933. An author and activist in her own right, Eleanor Roosevelt was a US delegate to the United Nations General Assembly from 1945 to 1952. One of the UN's most highly regarded statespeople, she played a crucial role in developing the Universal Declaration of Human Rights.

Where, after all, do human rights begin? In small places — close to home — so close and so small that they cannot be seen on any maps of the world. Such are the places where every man, woman and child seeks equal justice, equal opportunity, and equal dignity, without discrimination. Unless these rights have meaning there, they have little meaning anywhere.

inalienable belonging to a thing by its nature; not able to be taken away

treaty an agreement between two or more sovereign states (countries) to undertake a particular course of action. It usually involves matters such as human rights, the environment or trade.

22.5.2 Civil rights in America — desegregation

On 1 December 1955 an African-American seamstress named Rosa Parks sat halfway down a bus in Montgomery, Alabama, just behind the section reserved for white passengers (see **SOURCE 3**). When a white man got on the bus, the driver asked her to stand to make room for him, but Rosa Parks politely refused. ‘When I made that decision,’ she said later, ‘I knew that I had the strength of my ancestors with me.’

For her refusal to give up her seat, Rosa Parks was arrested and charged with breaking the segregation laws. At the time, the African-American community made up the majority of Montgomery’s bus passengers. Sparked by Rosa Parks’s defiance, they began to refuse to take the bus. The boycott lasted 381 days until the politicians caved in and abolished the bus segregation laws.

SOURCE 3 This excerpt from the Montgomery City Code refers to segregation of black and white people on the buses, which was the basis of Rosa Parks’s protest.

Sec. 10. Separation of races — Required.

Every person operating a bus line in the city shall provide equal but separate accommodations for white people and negroes on his buses, by requiring the employees in charge thereof to assign passengers seats on the vehicle under their charge in such manner as to separate the white people from the negroes, where there are both white and negroes on the same car; provided, however, that negro nurses having in charge white children or sick or infirm white persons, may be assigned seats among white people.

Nothing in this section shall be construed as prohibiting the operators of such bus lines from separating the races by means of separate vehicles if they see fit.

DID YOU KNOW?

Racism is based on the belief that a person’s race determines their ability and attributes, and that some people are inherently inferior to others. In the 1930s Hitler invoked racist theories to justify his persecution of the Jewish people. The same theories were used to justify racial segregation in the United States, South Africa and Australia.

SOURCE 4 On 4 September 1957 the Little Rock Nine attended their first day of school. This simple act would change the United States forever.



Little Rock, Arkansas

On 17 May 1954 the US Supreme Court ruled that segregation of public schools was **unconstitutional**. Later that year the Little Rock, Arkansas, school board had agreed to gradually desegregate its schools. Desegregation began on the first day of the school year, 1957. That morning, the nine African-American students enrolled at Little Rock Central High, thereafter known as the ‘Little Rock Nine’, were met by an angry mob, 1200 soldiers sent to the school for their protection and the world’s media.

During the year she attended Little Rock Central High, Minnijean Brown-Trickey was verbally abused, pushed down the stairs

unconstitutional not in accord with the principles set forth in the Constitution

and spat on. Not all the white students were hostile towards the new arrivals, but those who showed them kindness were liable to be beaten up themselves. Later she would recall, 'There were 100 bad kids and 1900 silent witnesses'. Her story, and those of the other eight students, would go on to inspire a generation of African-Americans.

Looking back on her year at Little Rock Central High, Minnijean Brown-Trickey said, 'History holds up a mirror showing the good things about us and the bad things about us. We have to choose. Do we want to be part of the mob attacking children or the children walking with dignity?'

22.5.3 Protests in the United States gain momentum

As the civil rights movement in the United States grew, particularly in the southern states where segregation was worse, there was great potential for violence. Although violence did erupt in states like Alabama, there were other voices preaching another way.

Martin Luther King

The Montgomery bus boycott had been organised by the Montgomery Improvement Association. Made up of religious ministers and activists, the group was led by a charismatic young civil rights campaigner named Martin Luther King Jr. His philosophy was simple: anything could be achieved by using non-violent resistance, so long as you could convince enough people to join the cause.

This philosophy was based on both his training as a minister and his interest in the work of Mohandas (Mahatma) Gandhi, whose non-violent protests had successfully challenged the British and won independence in India. Dr King summed up his philosophy by suggesting that 'the Christian doctrine of love operating through the Gandhian method of non-violence was one of the most potent weapons available to oppressed people in their struggle for freedom'. One of Dr King's most well known actions was the March on Washington for Jobs and Freedom (1963), where he delivered his most famous speech, remembered by the words, 'I have a dream ...'

SOURCE 5 Dr Martin Luther King Jr (centre) in the March on Washington for Jobs and Freedom, August 1963



on Resources

 **Video eLesson** Martin Luther King at the Washington civil rights rally (eles-2606)

22.5.4 Freedom Rides in the United States

The Freedom Rides in the United States began in May 1961. The riders were volunteers — 13 activists from the Congress of Racial Equality (CORE) and Student Nonviolent Coordinating Committee (SNCC). The activists set out from Washington DC to journey through the southern states of Virginia, North and South Carolina, Georgia, Alabama and Missouri to a planned rally in Louisiana. The white response in the states through which the two buses journeyed was often violent and full of hate. White mobs wielded baseball bats, bicycle chains and iron bars. Near Anniston, Alabama, on 14 May 1961, a white mob smashed the bus

windows, slashed the tyres and later firebombed the bus. Several Freedom Riders were badly injured. Violence continued over subsequent rides with state authorities doing little to intervene.

Although Martin Luther King never joined the Freedom Riders' campaign, he became one of their major spokespeople. When a 3000-strong mob blockaded the First Baptist Church in Montgomery, Alabama, where King was rallying support for the campaign, authorities responded only when US Attorney-General, Robert Kennedy, mobilised the National Guard who dispersed the mob with tear gas.

SOURCE 6 Freedom Riders sit beside their burned out bus near Anniston, Alabama, 14 May 1961



int-6708

SOURCE 7 Map showing the routes taken by the Freedom Riders



Source: Spatial Vision.

Results of the Freedom Rides

The Freedom Rides and the violent responses to them resulted in international media attention, embarrassing the US government. Although federal laws existed that ruled segregation illegal, state administrations,

particularly in the south, ignored them. The Freedom Rides continued until the Interstate Commerce Commission (ICC) forced bus companies to introduce desegregation. The goals of the campaign — to create headline news internationally and to gain publicity for the civil rights movement — were in large part achieved. Civil disobedience had proved a powerful way to protest against racist policies and effect change.

Explore more with myWorldHistoryAtlas

Deepen and check your understanding of this topic with related case studies and auto-marked questions.

- Rights and freedoms > Civil rights movements

on Resources

- ▶ **Video eLesson** Lyndon B. Johnson announces the passing of the Civil Rights Act (eles-2607)

22.5 ACTIVITY

Imagine you are one of the Little Rock Nine or one of their classmates. Write 500 words describing your first day at school and the responses of those people you see around you. You may need to conduct more research about the event before you begin.

HASS skills: Communicating and reflecting
History concepts: Sources, Evidence

22.5 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways

LEVEL 1

Questions
2, 4, 7, 10, 15, 16

LEVEL 2

Questions
1, 3, 5, 6, 11, 12, 13, 14

LEVEL 3

Questions
8, 9, 17, 18, 19

Check your understanding

1. When did the United Nations General Assembly adopt the UDHR? Use your general knowledge to explain what previous event had led to this point.
2. Who was Dr Evatt and what was his contribution to the history of civil rights? Why do some argue that he should be more widely recognised in Australia?
3. What is the difference between a declaration and a treaty? Do you think that the UDHR should have been a treaty? Would it have made any difference?
4. Why was Rosa Parks arrested in 1955? What resulted from her arrest and the subsequent boycott?
5. Why was the first day of school in 1957 such an important day for Little Rock, Arkansas?
6. What was Martin Luther King Junior's resistance philosophy?
7. Explain the two main influences on Dr King's viewpoints.
8. Consider the Freedom Rides in the United States.
 - a. Who were the Freedom Riders?
 - b. What was the response of some white Americans to the Freedom Rides?
 - c. Identify the outcome of the Freedom Rides.
9. Explain what the term 'civil disobedience' means.

Apply your understanding

10. Read the Eleanor Roosevelt quote in **SOURCE 2**.
 - a. What does this quote mean?
 - b. Who does it seem to be aimed at?
 - c. In what way could its message be seen to be reflected in the UDHR?
11. The Montgomery City Code (see **SOURCE 3**) claimed to offer ‘separate but equal’ treatment to white and black passengers. Identify words and phrases in the source that might be said to contradict this claim.
12. Use **SOURCE 4** and the text to explain the motivations behind the Little Rock Nine’s actions.
13. Examine **SOURCE 5** and answer the following.
 - a. What were these protesters aiming to achieve?
 - b. What examples of non-violent protest are evident?
 - c. What role do white people appear to be playing in the protest?
14. Martin Luther King never participated in a Freedom Ride. Based on **SOURCE 6**, why might he have made a conscious decision not to participate?
15. What does **SOURCE 6** tell you about the risks undertaken by a Freedom Rider?
16. From a study of **SOURCE 7**, what factual statements could you make about the Freedom Rides?
17. Using the sources in this subtopic, write a paragraph about why you think some white Americans resisted the civil rights campaigns so violently.
18. Using **SOURCES 1, 4, 5** and **6**, explain the power of photography as a source of historical evidence.
19. Identify the significant events mentioned in this subtopic and rank them in order of their impact on bringing about change. Be prepared to justify your ranking.

For sample responses to every question, go to www.jacplus.com.au.

22.6 The Freedom Ride in Australia

LEARNING INTENTION

By the end of this subtopic you will be able to describe the role of Charles Perkins in Aboriginal and Torres Strait Islander peoples’ fight for civil rights.

22.6.1 Charles Perkins — activist

Aboriginal and Torres Strait Islander peoples won the right to vote in federal elections in 1962; but even then they were not counted in the census and their affairs were still managed by the state governments. But growing awareness of human rights issues, specifically relating to racial discrimination, was beginning to turn the tide for First Nations peoples in Australia.

Charles Perkins was born in 1936 in the Alice Springs Telegraph Station Aboriginal Reserve. When he was 10, his mother arranged for him to be taken to an Anglican Boys’ Hostel in Adelaide to have, in his words, ‘the colour washed out of him’. His sporting talent as a soccer player opened doors of opportunity for him: in 1965 he became the first Aboriginal person to graduate from university. By then he was already a strong campaigner for Aboriginal and Torres Strait Islander rights.

Inspired by a similar civil rights action in the United States, Perkins organised the Freedom Ride of 1965, in which a group of 30 white university students from Student Action for Aborigines (SAFA) would take a bus tour of outback New South Wales. The journey was intended to be a ‘study tour’ of race relations in Australia.

As the bus readied to leave on 12 February 1965, the Reverend Ted Noffs said a prayer: ‘Almighty God ... we ask now that Thy blessing will rest upon these Australians as they journey out and endeavour to bring reconciliation and healing among people who have been divided because of the colour of their skin’. Over the following two weeks, the group saw the desperate poverty and often unsanitary living conditions experienced by Aboriginal peoples and witnessed the racial discrimination directed against them. In the town of Moree Aboriginal children were banned from using the public swimming pool. In Bowraville the cinema was partitioned. And in Walgett Aboriginal veterans were allowed into the Returned Soldiers’ League only on Anzac Day.

SOURCE 1 As a young man, Charles Perkins regularly took the bus from Sydney University to his home in Bondi. Photojournalist Robert McFarlane captured this image in 1961, when Perkins was just beginning to gain attention for his activism.



SOURCE 2 The Freedom Riders prepare to set out in 1965, unsure of what awaits them.



DISCUSS

The image of Charles Perkins in **SOURCE 1** has been described as ‘**iconic**’. In what ways is it iconic?

General capability: Critical and creative thinking

int-6709

SOURCE 3 The route the Freedom Riders followed



Source: Spatial Vision.

A hostile reception

As they drove 2300 kilometres around New South Wales, the Freedom Riders were subjected to a number of attacks. In Moree white women jeered and spat at the female students, while Jim Spiegelman was hit by a local. Perkins was threatened, punched in the back of the head and had an egg thrown down the back of his shirt. On a lonely country road, late at night, the students’ bus was rammed by a farmer. Despite the physical toll taken on many Freedom Riders, the trip was an enormous success, attracting national and international media attention, and forcing Australians to confront the racial tensions and inequity that were still rife in many parts of the country. Perkins would later write, ‘What we gave Aboriginal people in the towns we visited was hope. We stirred their imagination, their desire for human rights’.

iconic important or enduring

SOURCE 4 Diary entry from the Freedom Ride, Wellington

Went to settlement outside reserve. Police warned us not to go into reserve. Interviewed about ten tin shacks of people. Most of us found the questionnaires unsuitable. Houses of tin, mud floors, very overcrowded, kids had eye diseases, had to cart water (very unhealthy) from river. People fairly easy to talk to, kids quite friendly. General picture of extreme poverty but not a great deal of social discrimination. Got seven interviews on the settlement just outside the reserve, and two in the town. General picture of scarcity of jobs. Mainly garden work, which is very seasonal. Average of three months for year out of work. Some working on a dam nearby. Some did shearing jobs. Did not encounter or hear of any women with jobs at all. Did not seem to know much about social services etc.

Lunch 1.30. Apparently Jim S and a few others came across some discrimination in a pub. An aboriginal was allowed in only because he was with us. The publican said he only prevented aborigines from coming in 'if they were disorderly'. Charlie went in and there was some discussion between the barmaid and the publican before they served him. Some aborigines told us they had been kicked out of this pub, the 'Courthouse'. Left Wellington and arrived in Dubbo about 6.30 pm. Had tea, went for a swim, then to the Dubbo hotel. We noticed a sign above the doorway of the halfway hotel — 'Aborigines not allowed in the Lounge without the Licensee's permission'. We didn't do anything. Slept in the Methodist Church ...

22.6.2 The legacy of the Freedom Ride

Newspaper and television coverage of the Freedom Ride created awareness and discussion in Australia about the racist injustices faced by Australia's First Peoples. This media attention and debate aided the campaign for removal of discrimination in the Australian Constitution, with the referendum in 1967 being carried. Charles Perkins emerged as a national leader for Aboriginal and Torres Strait Islander peoples, and a role model for prosecuting a cause using non-violent means.

Charles Perkins's commitment to the Australian community was recognised at various points in his life. He became the Jaycees Young Man of the Year in 1966 and Aboriginal of the Year in 1993; he was awarded the Order of Australia in 1987. He was elected to the Aboriginal and Torres Strait Islander Commission (ATSIC), serving as its deputy chairman in 1994 and 1995, and remained committed to activism until his death in October 2000.

Perkins was not the only Freedom Rider whose life was dedicated to social justice. Jim Spiegelman later became Chief Justice of the NSW Supreme Court. For his contribution to bringing about a fairer and more equitable society he was appointed a Companion of the Order of Australia. Former medical student Andrew Refshauge became the Minister for Aboriginal Affairs. The Freedom Ride itself was an important event in the fight for Indigenous rights and freedoms and inspired a number of further 'freedom rides'.

SOURCE 5 In 2005, on the fortieth anniversary of Perkins's Freedom Ride, the bus set out again, filled with around 30 students and supported by the group reconciliACTION, who hoped to investigate how far country Australia had come in improving race relations since 1965.



22.6 ACTIVITIES

1. Using your local library or the internet, find out as much as you can about one of the towns visited by the Freedom Riders, including information about the demographics of the population at the time of their visit.
 - a. Based on what you have learned, why do you think the group might have chosen to visit this town?
 - b. What do you think their impressions of the town would have been?
 - c. How might the locals have responded to them?Justify your claims using evidence such as facts, figures and photographs.

HASS skills: Questioning and researching
History concepts: Sources, Evidence

2. One of the significant elements of the Freedom Ride was that much of it was captured on film. What role do you think this played in the campaign? Research the incident in Walgett, NSW, where the vice-president of the Walgett Returned Service League Club was captured making racist comments on film.

HASS skills: Analysing
History concepts: Sources, Evidence

22.6 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways

LEVEL 1

Questions
1, 2, 3, 8, 10

LEVEL 2

Questions
4, 5, 7, 9, 12

LEVEL 3

Questions
6, 11, 13, 14, 15

Check your understanding

1. What was Charles Perkins's background?
2. What inspired Perkins to organise the bus ride in 1965?
3. In what ways was the Freedom Ride about 'freedom'?
4. What was the trip about other than freedom? How can you tell?
5. What forms of resistance did the Freedom Riders encounter, and how did they combat them?
6. Use evidence from this section to support the statement that Charles Perkins devoted his life to social justice for Aboriginal and Torres Strait Islander peoples.

Apply your understanding

7. What aspects of **SOURCE 1** might have led to its becoming an iconic image of Charles Perkins?
8. Based on the body language and clothing worn by the students in **SOURCE 2**, what words would you use to describe them? Do you think they were prepared for what they would find on their Freedom Ride? Explain your answer.
9. Use **SOURCE 3** to work out on average, the amount of time the Freedom Riders spent in each location.
10. Using the same diary format as **SOURCE 4**, write a short entry from the perspective of a Freedom Rider after visiting the town of Moree. Your diary entry should include events, thoughts and feelings.
11. How do the people shown in **SOURCE 5** appear to be paying respect to Charles Perkins and his role in the Freedom Rides of the 1960s?
12. What improvements to race relations do you think that the 2005 Freedom Ride from **SOURCE 5** would have discovered?
13. Identify both the short-term and long-term effects of the Freedom Ride of 1965. Display these in diagrammatic form.
14. Do you think controversy and civil disturbance are good ways to attract media publicity to a cause? Why or why not?
15. Can you think of any other ways in which the plight of Aboriginal peoples could have been publicised in 1965? Think creatively and take risks in offering possible solutions.

For sample responses to every question, go to www.jacplus.com.au.

22.7 Being counted

LEARNING INTENTION

By the end of this subtopic you will be able to explain why and the ways in which the 1967 Referendum was such a significant event and identify the ways in which this 'yes' vote did and did not change life for Aboriginal and Torres Strait Islander peoples.

22.7.1 The right to vote

In the early 1960s, following challenges to racial segregation overseas, many Australians were becoming increasingly uncomfortable with the unfair treatment of Australia's Indigenous peoples. The government was also under international pressure to make their policies more inclusive.

In 1961 a parliamentary panel recommended that Indigenous peoples be allowed to vote in federal elections. In March 1962 the Commonwealth Electoral Act was amended to provide that Indigenous peoples could enrol to vote in federal elections. While it was compulsory for other Australians to enrol, this was not the case for Aboriginal and Torres Strait Islander peoples. It was an offence for anyone to use undue influence or pressure to induce them to enrol. Once enrolled, however, voting was compulsory. It was not until 1971 that voting in state elections was made compulsory for Aboriginal and Torres Strait Islander peoples.

In 1962 the right to vote in state/territory elections was also extended to Aboriginal and Torres Strait Islander peoples in the Northern Territory and Western Australia. It would take another three years before Queensland would join other states in permitting Aboriginal and Torres Strait Islander peoples to vote in state elections.

SOURCE 1 People exercise their democratic right to vote at a polling booth in Bagot Settlement, Northern Territory, in 1962. Prior to this, all Aboriginal and Torres Strait Islander peoples in the Northern Territory had been deemed wards of the state and therefore denied the right to vote.



22.7.2 The 1967 Referendum

In 1967 there remained one area in which Aboriginal and Torres Strait Islander peoples were treated very differently from every other member of the Australian population: they were not counted in the national **census**. The census is a tool used by the government to count its citizens and extract important demographic information, such as their age, gender and where they live. This information can then be used to make appropriate plans for providing community services such as schooling, healthcare and housing.

The Australian Constitution stated, 'In reckoning the numbers of the people of the Commonwealth, or of a State or other part of the Commonwealth, aboriginal natives shall not be counted'. To Aboriginal activist Chicka Dixon, the message the Constitution conveyed was quite clear: 'It said the Australian Commonwealth

census an official, usually periodic count of a population

Government would recognise all races of people other than Aboriginal — in other words, we didn't exist ...'

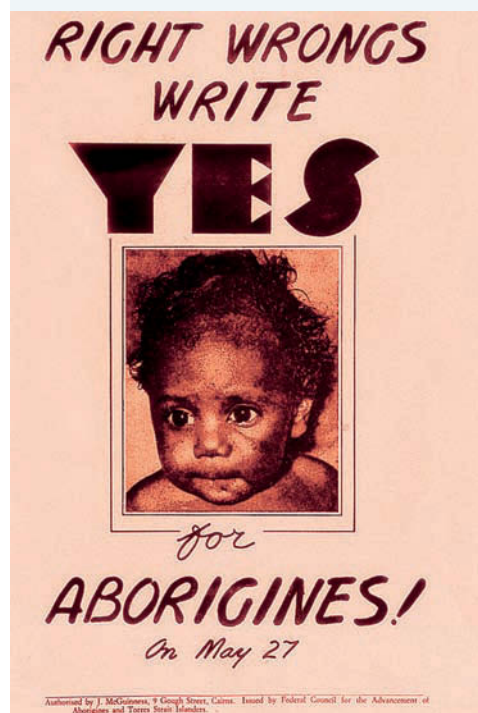
The only way to change the Constitution is to hold a **referendum**. Before 1967 there had been 26 referenda in Australia, only four of which had been carried (approved). For a proposal to succeed, a majority of voters must say 'yes'; also, the majority 'yes' vote must occur in a majority of states (that is, at least four).

The referendum planned for 27 May 1967 would put two proposals to the Australian people:

- that Aboriginal people should be counted in the census
- that Aboriginal people should be placed under the jurisdiction of the Commonwealth, not state governments, so that laws affecting them could be implemented consistently and fairly across Australia.

Before the vote a publicity campaign was organised and all eligible voters were sent a booklet spelling out the 'yes' and 'no' cases. Both proposals received overwhelming **bipartisan** support, with a staggering 90.7 per cent of votes in favour, the highest 'yes' vote ever recorded in a referendum in Australia.

SOURCE 2 A poster for the 'yes' vote



int-6710

SOURCE 3 This table was featured in an informative pamphlet provided to voters by the Federal Council for the Advancement of Aborigines (FCAA) prior to the referendum. It summarises the rights that First Nations peoples had in different states at the time.

Right	NSW	VIC	SA	WA	NT	QLD
Voting rights (state)	Yes	Yes	Yes	No	Yes	No
Marry freely	Yes	Yes	Yes	No	No	No
Control own children	Yes	Yes	No	No	No	No
Move freely	Yes	No	No	No	No	No
Own property freely	Yes	No	Yes	No	No	No
Receive award wages	Yes	No	No	No	No	No
Alcohol allowed	No	No	No	No	No	No

If you are the owner of this work, please come forth and contact us.
© Federal Council for the Advancement of Aborigines (FCAA)

22.7.3 From assimilation to integration

After Aboriginal and Torres Strait Islander peoples had gained the rights to vote in federal elections and to be counted in the census, institutional discrimination began to soften. But the shift in policy from 'assimilation' to 'integration' was due, in large part, to the hundreds of thousands of new migrants who had entered the country since the end of World War II and were trying to find the balance between honouring their traditional beliefs, language and culture, and adopting the Australian way of life.

referendum a ballot in which people decide on an important political issue

bipartisan supported by the two major political parties

Unlike assimilation, **integration** policy did not require a person to deny their cultural background, including their language, in order to become a valuable member of society. Yet while integration was a step in the right direction, it fell short of recognising the true value of other cultures. Integration policy, like assimilation before it, still expected citizens to adapt to the needs of the country, rather than the other way around.

integration policy requiring immigrants to publicly adopt the new country's culture while still being able to celebrate their own culture privately; a policy that recognised the value of Aboriginal and Torres Strait Islander cultures and the right to retain their languages and customs and maintain their own distinctive communities

SOURCE 4 Pat O'Shane's reaction to the result of the 1967 referendum. From Pat O'Shane, 'Aboriginal People and Political Power', quoted in C. Cunneen and T. Libesman 1995, *Indigenous People and the Law in Australia*, Butterworth, Sydney, pp. 214–5.

My reaction to the referendum result was one of exhilaration. I thought that it was really going to sweep away the past, I suppose. I think probably to one degree or another we all felt that. I think those who had been really active in the campaign — certainly Aborigines and Islanders in the north, where I came from — felt that this was our liberation. Of course, it wasn't; it didn't work like that at all. The Queensland Act stayed there and the change to the Constitution didn't do anything to alter that situation. But it was liberating to this extent: the people actually knew, felt, believed that they were citizens of Australia. I think that made a very significant psychological difference to how we operated, because then it wasn't a question of our campaigns being directed at being recognised as Australian citizens but being able to fight other fights, wage other campaigns. So, it was an exhilarating experience for me and certainly for a lot of people that I worked with at that time.

22.7 ACTIVITY

Using your local library or the internet, learn more about the activists Chicka Dixon or Faith Bandler and their role in convincing Australians to vote 'yes' in 1967. Concentrate your research on your chosen activist's background and what might have motivated them to fight for this cause.

HASS skills: Analysing
History concepts: Sources, Evidence

22.7 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways

LEVEL 1

Questions
1, 2, 7, 9, 12

LEVEL 2

Questions
3, 4, 8, 10, 11

LEVEL 3

Questions
5, 6, 13, 14, 15

Check your understanding

1. Indicate whether each of the following statements is true or false.
 - a. The 1962 Electoral Act amendment was responsible for giving Aboriginal and Torres Strait Islander peoples the right to vote in state elections.
 - b. Queensland extended the right to vote in state elections to its Aboriginal and Torres Strait Islander population in 1965.
 - c. Under the *Electoral Amendment Act 1962*, Aboriginal and Torres Strait Islander peoples were compelled to enrol to vote.

- d. The census is an important tool in understanding the needs of a population.
 - e. The referendum of 1967 made Aboriginal and Torres Strait Islander peoples Australian citizens.
 - f. The proposals in the 1967 referendum were agreed to by the two major political parties.
2. Construct a timeline to show all the dates and events outlined in section 22.7.1.
 3. What result is required for a referendum proposal to be successful?
 4. In what way was the Australian Constitution amended as a result of the 1967 referendum? Why was this important?
 5. As an official policy, do you think that integration was an improvement on assimilation? Explain your answer.
 6. Why was the integration policy still not ideal?

Apply your understanding

7. Is **SOURCE 1** a primary or secondary source? Explain your choice.
8. Study **SOURCE 2**.
 - a. What 'play on words' is used in the poster in **SOURCE 2**? Do you consider it an effective way of getting the message across?
 - b. Who authorised this poster? Would you regard this as a reliable source based on this authorisation?
 - c. What do you think the message on a poster in favour of a 'no' vote might be?
9. After reading **SOURCE 4** about Pat O'Shane's recollections of the time around the referendum, explain what her reaction to the referendum result was. What were they celebrating?
10. Do you believe that Chicka Dixon was justified in his comments about the Australian Constitution? Why or why not?
11. Using **SOURCE 3**, rank the states from best to worst in terms of providing rights to Aboriginal and Torres Strait Islander peoples. Give reasons for your choice.
12. Explain any differences between the two policies of assimilation and integration.
13. Why did the shift from assimilation to integration happen?
14. What was the impact of the shift?
15. Evaluate the impact of the referendum on the move towards equal rights for Aboriginal and Torres Strait Islander peoples. For help in Evaluating see topic 1 HASS skills.

For sample responses to every question, go to www.jacplus.com.au.

22.8 Torres Strait Islander rights and freedoms

LEARNING INTENTION

By the end of this subtopic you will be able to describe some of the similarities and differences in the treatment of and fight for freedom by Torres Strait Islander and Aboriginal peoples.

22.8.1 The Torres Strait Islander community today

Torres Strait Islander peoples are a separate people in origin, history and culture from Australia's Aboriginal peoples. Traditionally, they lived on over 100 islands of the Torres Strait, close to the larger island of New Guinea. The islands became part of the state of Queensland in 1879.

The 2016 Census recorded Australia's Aboriginal and Torres Strait Islander population at 649 200, comprising 2.8 per cent of Australia's total population. Of these 649 200 citizens, 4.1 per cent (26 600) reported being of both Aboriginal and Torres Strait Islander origin, and 5 per cent (32 400) were of Torres Strait Islander origin only. Thus, they can be regarded as a minority within a minority. Approximately 4000 of those 32 400 live in the Torres Strait Islands, with the remainder of the population living in mainland Australia, predominantly in Queensland.

SOURCE 2 shows the flag of the Torres Strait Islands. It portrays a white headdress (Dari), which is a symbol of the peoples who identify as Torres Strait Islanders. The five-pointed star symbolises the five major island groups. The green stripes represent the land, the black stripes the people and the blue the sea. In 1995, the federal government proclaimed the flag as a 'Flag of Australia', giving it legal recognition. While many of the struggles for equal rights and freedoms faced by Aboriginal Australians historically and today are also relevant to Torres Strait Islanders peoples there are also specific issues that affect Torres Strait Islander peoples' unique geographical and historical context.

22.8.2 Struggles for recognition and rights

From 1897, the Torres Strait Islander peoples were subject to the Queensland Aboriginals Protection Act and Restriction of the Sale of Opium Act. Reserves were established from 1912 and a curfew and pass system controlled the lives of the people.

The *Torres Strait Islanders Act 1939* recognised people from the Torres Strait Islands as a separate people after a maritime strike that protested for Islanders' rights to control wages and their own affairs under the Protection Acts. However, the Department of Native Affairs established under the Queensland Department of Health and Home Affairs continued to control many aspects of island life.

World War II discrimination

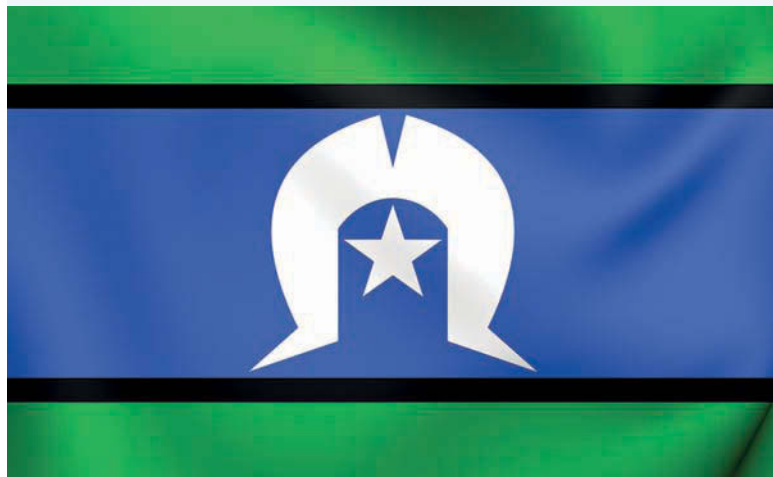
During World War II, more than 700 Torres Strait Islanders served in the Torres Strait Light Infantry Battalion. Others served in support roles in the defence forces, although none were initially permitted to advance beyond the rank of corporal. They were paid only one-third the European rate and were given no family allowance. Torres Strait Islander soldiers staged sit-down strikes in 1943 and 1944, resulting in army authorities raising their pay rate to two-thirds the European rate, but lowering what had been full **repatriation** benefits by a third. It was not until 1983 that the federal government repaid the full amount to those who had served. In 2015, Australia's prime minister at the time, Tony Abbott, awarded medals to three surviving Torres Strait Islander war veterans (see **SOURCE 4**).

SOURCE 1 A map showing the location of the Torres Strait Islands. Australia's border is shown by the pink dotted line. The administrative centre is Thursday Island.



Source: MAPgraphics Pty Ltd, Brisbane.

SOURCE 2 The flag of the Torres Strait Islands



SOURCE 3 An extract from the Torres Strait Islanders Act 1939, which recognised, in its definitions, the separate status of Torres Strait Islander peoples

Definitions.	3. In this Act, unless the context otherwise indicates, the following terms have the meanings set against them respectively, that is to say :—
Council.	“ Council ”—The island council constituted under this Act ;
Director.	“ Director ”—The Director of Native Affairs appointed under †“ <i>The Aboriginals Preservation and Protection Act of 1939</i> ” and charged with the administration of this Act: the term also includes the Deputy Director of Native Affairs or any officer who may be appointed as Assistant Director of Native Affairs ;
Islander.	“ Islander ”—Any person who is— (a) One of the native race of the Torres Strait islands, (b) A descendant of the native race of the Torres Strait islands and is habitually associating with islanders as defined in paragraph (a) of this definition, or

TORRES STRAIT ISLANDERS.

17803

1939.

Torres Strait Islanders Act.

PART I.—
PRELIMINARY.

- (c) A person other than an islander as defined in paragraph (a) or (b) of this definition who is living on a reserve with an islander as so defined as wife or husband or any such person other than an official or person authorised by the protector who habitually associates on a reserve with islanders as so defined ;
- “ Minister ”—The Secretary for Health and Home Affairs or other Minister of the Crown charged for the time being with the administration of this Act ;
- “ Prescribed ”—Prescribed by this Act ; Prescribed.
- “ Protector ”—The Protector of Islanders: the term shall also include the Deputy Protector of Islanders ; Protector.
- “ Regulations ”—Regulations made under this Act ; Regulations.
- “ Reserve ”—Any Torres Strait island or part of a Torres Strait island heretofore or hereafter granted in trust or reserved from sale or lease by the Governor in Council for the benefit of islanders under the provision of any law in force in Queensland relating to Crown lands ; Reserve.
- “ This Act ”—This Act and all Proclamations, Orders in Council, regulations and by-laws thereunder ; This Act.
- “ Torres Strait island ”—Any island north of eleven degrees south latitude which is part of the State of Queensland. Torres Strait island.

Page 11 —

SOURCE 4 Former Prime Minister Tony Abbott awards a medal to Bamia Mast, a veteran of World War II service in the Torres Strait Light Infantry Battalion.



Gaining the vote

As was the case for Aboriginal Australians, Torres Strait Islander peoples were not able to vote in federal elections until the passing of the Commonwealth Electoral Amendment Act in 1962. They were denied the right to vote in state elections irrespective of whether they lived on island reserves in the Torres Strait or on the Queensland mainland. On 17 December 1965, the state legislation was passed, extending voting rights to all Aboriginal and Torres Strait Islander peoples resident in Queensland. The first state election in which they were able to vote was held on 28 May 1966.

National organisations

People from the Torres Strait Islands played an active role in national campaigns and organisations, particularly in the lead-up to the 1967 Referendum. The Federal Council for Aboriginal Advancement became the Federal Council for the Advancement of Aborigines and Torres Strait Islanders (FCAATSI) in 1964 as a result of the work of Islander people such as Dulcie Flowers and Elia Ware. Elia Ware, from Moa, had served in the Torres Strait Light Infantry Battalion and became a foundation member of the Cairns Advancement League after moving there in the late 1950s. He was also active in the ongoing campaign to redress the discrimination against the Torres Strait Islander men who had served in the Light Infantry Battalion.

The Torres Strait Regional Authority

The Torres Strait Regional Authority (TSRA) was established on 1 July 1994 in response to local demands for greater autonomy. It is a Commonwealth statutory authority governed by the *Aboriginal and Torres Strait Islander Act 2005*. Torres Strait Islander peoples felt that they needed a separate organisation to deal with issues specifically relevant to their culture and their region (**ailan kastom**).

ailan kastom (island custom)
the body of customs, traditions, observances and beliefs of some or all of the Torres Strait Islanders peoples living in the Torres Strait area

Today, the Authority has a Board consisting of 20 elected members who are all Torres Strait Islander or Aboriginal persons living in the region. They are elected every four years by their individual communities. The TSRA administers a Torres Strait Development Plan, which contributes to closing the gap between Torres Strait Islander and Aboriginal peoples in the Torres Strait region and non-Indigenous people in mainland Australia.

SOURCE 5 An extract from the *Aboriginal and Torres Strait Islander Act 2005*

142A Functions of TSRA

Functions

1. The TSRA has the following functions:
 - a. to recognise and maintain the special and unique Ailan Kastom of Torres Strait Islanders living in the Torres Strait area;
 - b. to formulate and implement programs for Torres Strait Islanders, and Aboriginal persons, living in the Torres Strait area;
 - c. to monitor the effectiveness of programs for Torres Strait Islanders, and Aboriginal persons, living in the Torres Strait area, including programs conducted by other bodies;
 - d. to develop policy proposals to meet national, State and regional needs and priorities of Torres Strait Islanders, and Aboriginal persons, living in the Torres Strait area;
 - e. to assist, advise and co-operate with Torres Strait Islander and Aboriginal communities, organisations and individuals at national, State, Territory and regional levels;
 - f. to advise the Minister on:
 - i. matters relating to Torres Strait Islander affairs, and Aboriginal affairs, in the Torres Strait area, including the administration of legislation;
 - ii. the co-ordination of the activities of other Commonwealth bodies that affect Torres Strait Islanders, or Aboriginal persons, living in the Torres Strait area;
 - g. when requested by the Minister, to provide information or advice to the Minister on any matter specified by the Minister;
 - h. to take such reasonable action as it considers necessary to protect Torres Strait Islander and Aboriginal cultural material and information relating to the Torres Strait area if the material or information is considered sacred or otherwise significant by Torres Strait Islanders or Aboriginal persons; ...

22.8 ACTIVITY

Undertake some research into the current issues that are of importance to Torres Strait Islander peoples. Do they have any similarities with the issues of importance to Aboriginal Australians?

HASS skills: Questioning and researching
History concept: Continuity and change

22.8 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways

LEVEL 1

Questions

1, 2, 3, 10, 12, 13

LEVEL 2

Questions

4, 5, 6, 9, 11

LEVEL 3

Questions

7, 8, 14, 15, 16

Check your understanding

1. Why can Torres Strait Islander peoples be described as 'a minority within a minority'?
2. Do all Torres Strait Islander peoples live in the Torres Strait Islands? Explain.



3. Do Torres Strait Islander peoples share a common origin and culture with Aboriginal peoples on the Australian mainland? Explain.
4. What was the outcome of the *Torres Strait Islanders Act 1939*?
5. Identify examples of discrimination against Torres Strait Islander men who served in World War II.
6. When did Torres Strait Islander peoples gain the right to vote in:
 - a. federal elections
 - b. state elections?
7. Who was Elia Ware and what were his achievements?
8. Explain *ailan kastom*.

Apply your understanding

9. Study the map in **SOURCE 1**. How does this map show how geography might have influenced the identity, history and culture of Torres Strait Islander peoples?
10. How could the Torres Strait Island flag shown in **SOURCE 2** be considered a historical source?
11. According to the extract from the *Torres Strait Islanders Act 1939* (**SOURCE 3**), what was the definition of an Islander? Why was this definition of legal and historical significance?
12. Study **SOURCE 4** and describe what is taking place. Why was this of historical significance to Torres Strait Islander peoples?
13. Is **SOURCE 5** a primary or secondary source? How does it provide evidence for the recognition of *ailan kastom* in the Torres Strait Islands?
14. Consider whether the sources in this subtopic support or deny a claim that Torres Strait Islander peoples have the right to be recognised as different from Aboriginal Australian peoples. What might be the advantages and disadvantages of such separateness?
15. Create a timeline to show the significant milestones covered in this subtopic in the history of Torres Strait Islander peoples' journey towards rights and freedoms.
16. In the light of Australia's honouring of non-Indigenous men and women who served in World War II, how significant is it for Torres Strait Islander peoples' service to be recognised? Write a paragraph expressing your view.

For sample responses to every question, go to www.jacplus.com.au.

22.9 The Aboriginal Tent Embassy

LEARNING INTENTION

By the end of this subtopic you will be able to:

- explain some of the issues in the fight for land rights
- describe how these have intersected with the broader fight for recognition by Aboriginal and Torres Strait Islander peoples
- identify why the Aboriginal Tent Embassy became such a potent symbol of this fight.

22.9.1 The Yirrkala petition

In the late eighteenth century, proof of sovereignty (exclusive rights) over land, under European law, required evidence of fencing, farming or settlement. Captain James Cook saw no such evidence when exploring the east coast of Australia and proclaimed the country *terra nullius*. Believing that the land belonged to no-one, he legally claimed it for the British Crown in 1770. It would be almost 200 years before this claim would be challenged in Australia's courts.

The **land rights** movement began in 1963 when the Yolngu people from Yirrkala (in the Northern Territory) sent a bark petition to federal parliament. Signed by 17 Aboriginal leaders, it protested the government's decision to allow a mining company to mine bauxite on their traditional lands.

Encouraged by the support they received for this action, the Yolngu lodged a challenge in the Northern Territory Supreme Court in 1968. Three years later, Justice Blackburn ruled that, while the Yolngu system of law and the people's longstanding association with the land were recognised, British law had replaced these after 1788.

land rights the rights of Indigenous peoples to possess land they traditionally owned and occupied

This decision angered many Indigenous people, whose expectations had been raised by the outcome of the 1967 referendum. On Australia Day 1972, Prime Minister William McMahon proclaimed that 'land rights would threaten the **tenure** of every Australian'.

SOURCE 1 The Yirrkala bark petition, sent to federal parliament in 1963. A transcript of the text is shown in **SOURCE 2**.



SOURCE 2 Transcript of the text of the Yirrkala petition

TO THE HONOURABLE SPEAKER AND MEMBERS OF THE HOUSE OF REPRESENTATIVES IN PARLIAMENT ASSEMBLED.

The Humble Petition of the Undersigned aboriginal people of Yirrkala, being members of the Balamumu, Narrkala, Gapiny, Miliwurrwurr people and Djapu, Mangalili, Madarrpa, Magarrwanalmirri, Djambarrpuynu, Gumaitj, Marrakulu, Galpu, Dhaluangu, Wangurri, Warramirri, Naymil, Riritjingu, tribes respectfully sheweth.

1. That nearly 500 people of the above tribes are residents of the land excised from the Aboriginal Reserve in Arnhem Land.
2. That the procedures of the excision of this land and the fate of the people on it were never explained to them beforehand, and were kept secret from them.
3. That when Welfare Officers and Government officials came to inform them of decisions taken without them and against them, they did not undertake to convey to the Government in Canberra the views and feelings of the Yirrkala Aboriginal people.
4. That the land in question has been hunting and food gathering land for the Yirrkala tribes from time immemorial: we were all born here.
5. That places sacred to the Yirrkala people, as well as vital to their livelihood are in the excised land, especially Melville Bay.
6. That the people of this area fear that their needs and interests will be completely ignored as they have been ignored in the past, and they fear that the fate which has overtaken the Larrakeah tribe will overtake them.
7. And they humbly pray that the Honourable the House of Representatives will appoint a Committee, accompanied by competent interpreters, to hear the views of the people of Yirrkala before permitting the excision of this land.
8. They humbly pray that no arrangements be entered into with any company which will destroy the livelihood and independence of the Yirrkala people.

And your petitioners as in duty bound will ever pray God to help you and us.

22.9.2 The Aboriginal Tent Embassy

On the day of Prime Minister McMahon's announcement in 1972, Aboriginal activists erected a beach umbrella on the lawn outside Parliament House. The umbrella was accompanied by a sign that read 'Aboriginal **Embassy**'. Soon the grounds were filled with tents and activists as Aboriginal and Torres Strait Islander peoples asserted their right to occupy their traditional lands. The Aboriginal Tent Embassy, as it became known, quickly drew media attention along with further support and controversy. It was a visible demonstration of Aboriginal and Torres Strait Islander peoples' desire to move beyond the policies of assimilation and integration, towards an official recognition of their right to determine their own future.

tenure a system by which particular individuals or groups are given a legally recognised right to occupy a defined area of land

embassy the residence or place of official business of an ambassador, who represents a foreign country

SOURCE 3 An artist's impression of the Aboriginal Tent Embassy, 1972



- A** The Embassy flew the Aboriginal flag, which had recently been designed by Luritja man and artist Harold Thomas.
- B** While most of the 2000 supporters demonstrated peacefully, throughout 1972 some protesters scuffled with police, leading to a number of arrests.
- C** In 1972, members of the national and international press began to take notice. Their coverage helped to make the Tent Embassy a symbol of the worldwide struggle for civil rights.
- D** Placards were a constant reminder of what the group was fighting for.

22.9 ACTIVITIES

1. Discuss the following with a classmate.
 - a. Why might the activists have chosen to call their camp an 'embassy'?
 - b. How might events have turned out differently if they had not placed that sign above their tents?

History concept: Cause and effect
2. Using **SOURCE 3** and your own research, write a newspaper article that could have been written in 1972 explaining the purpose of the Aboriginal Tent Embassy and the public response to it. In your article, engage the reader by making them feel as if they're there with you.

HASS skills: Communicating and reflecting
History concepts: Sources, Evidence

22.9 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways

LEVEL 1

Questions
1, 2, 7, 8

LEVEL 2

Questions
3, 6, 9

LEVEL 3

Questions
4, 5, 10

Check your understanding

1. Why did Captain Cook believe Australia belonged to no-one?
2. Why did the Yolngu people want to control their own land?
3. What, according to Prime Minister McMahon, was the major reason for not granting the Yolngu people rights over their land?
4. What did the Aboriginal Tent Embassy represent?
5. What was controversial about it?

Apply your understanding

For help with the History concepts of Perspective and Significance, see topic 19 History concepts and skills and concepts.

6. What does the Yirrkala petition (see **SOURCES 1** and **2**) represent about the Yolngu people, and Aboriginal Australians more generally? In your answer, refer to what you know of the content of the document, as well as its physical form.
7. Study **SOURCE 3**.
 - a. How useful is a source like this? Evaluate its importance.
 - b. Would a photograph be more or less useful in its place? Explain your answer.
8. Create a timeline titled 'The struggle for land rights' that begins in 1770 and ends in the present. Include all the important dates from this subtopic on your timeline. Make sure to annotate them so you will remember why these dates are important.
9. The Aboriginal Tent Embassy has been removed and rebuilt several times, but still exists on the lawns of Old Parliament House. Some people believe it is a cultural icon and should be preserved, while others view it as an eyesore and believe it should be removed. Which perspective do you agree with, and why? What other perspectives might be relevant to this discussion?
10. The Aboriginal Tent Embassy flew the Aboriginal flag. What was so significant about flying this flag at the time? Does it still have the same significance today?

For sample responses to every question, go to www.jacplus.com.au.

22.10 Land rights and protests

LEARNING INTENTION

By the end of this subtopic you will be able to explain how land rights are central to the struggle for rights and freedoms, and describe some of the major events related to land rights.

22.10.1 The Gurindji Strike

After the Yolngu people's unsuccessful bid to regain their land in 1963, it seemed to many that Aboriginal and Torres Strait Islander peoples' land rights might never be recognised by the government. Then in 1966, fed up with their poor treatment, a group of Gurindji, Mudburra and Warlpiri workers walked off the Wave Hill cattle

station, owned by the British aristocrat Lord Vestey. This simple act of defiance, which began as a strike, would eventually become the first successful land rights case in Australia, setting the **precedent** for many others.

Since 1914 the Vestey family had owned the Wave Hill cattle station, which covered the traditional lands of the Gurindji people. Working conditions on the station were hard. Aboriginal workers complained of low pay, disrespectful treatment by white workers and poor living conditions — claims that had been confirmed by official reports. Dissatisfaction with these conditions had already led to at least three strikes or protests on the property — in 1949, 1952 and 1955.

On 23 August 1966 about 200 Aboriginal stockmen, domestic servants and their families walked off the property. Under the leadership of a Gurindji Elder named Vincent Lingiari, the group moved to Wattie Creek (known as Daguragu to the Gurindji people), an area also officially owned by Lord Vestey. Daguragu was chosen as a suitable place to camp both because it contained a number of sacred Gurindji sites and because it provided a reliable source of fresh drinking water.

Vestey sent a member of the Anti-Slavery Society in London to visit Wave Hill and assess the situation. On recommendation, the Vestey company volunteered to surrender half the Wave Hill lease area. However, the government did not allow the transfer because Indigenous land rights were not recognised at that time. Instead, the government offered the workers a raise in wages and new houses that would be built at Wave Hill. The protesters refused, insisting that they should be given the same wages as white employees. As the ‘Wave Hill mob’ set up camp, it became clear that this would be a struggle not only for better working conditions, but for ownership of their traditional lands.

precedent an action or decision on which later actions or decisions might be based; a law made by a superior court that must be applied by lower courts in future cases with the same or similar facts

SOURCE 1 Ted Egan was a supporter of the Gurindji people’s battle to take ownership of their traditional lands. During the Wave Hill walk-off, he interviewed Gurindji leader Vincent Lingiari and told his story through the song ‘Gurindji Blues’, which was recorded in 1969. The sales of the single helped finance the Aboriginal Tent Embassy for its first six months.

Gurindji Blues

My name is Vincent Lingiari, came
from Daguragu, Wattie Creek Station.

Poor bugger me Gurindji
Me bin sit down this country
Long time before the Lord Vestey
Allabout land belongin’ to We
Oh poor bugger me, Gurindji.
Poor bugger blackfeller; Gurindji
Long time work no wages, we,
Work for the good old Lord Vestey
Little bit flour; sugar and tea
For the Gurindji, from Lord Vestey
Oh poor bugger me.
Poor bugger me, Gurindji,
Man called Vincent Lingiari
Talk long allabout Gurindji
‘Daguragu place for we,
Home for we, Gurindji:
But poor bugger blackfeller, Gurindji
Government boss him talk long we
‘We’ll build you house with electricity
But at Wave Hill, for can’t you see
Wattie Creek belong to Lord Vestey’
Oh poor bugger me.

Poor bugger me, Gurindji
Up come Mr. Frank Hardy
ABSCHOL too and talk long we
Givit hand long Gurindji
Buildim house and plantim tree
Longa Wattie Creek for Gurindji
But poor bugger blackfeller Gurindji
Government Law him talk long we
‘Can’t givit land long blackfeller, see
Only spoilim Gurindji’
Oh poor bugger me.
Poor bugger me, Gurindji
Peter Nixon talk long we:
‘Buy you own land, Gurindji
Buyim back from the Lord Vestey’
Oh poor bugger me, Gurindji.
Poor bugger blackfeller Gurindji
Suppose we buyim back country
What you reckon proper fee?
Might be flour, sugar and tea
From the Gurindji to Lord Vestey?
Oh poor bugger me.
Oh ngaiyu luyurr ngura-u
Sorry my country, Gurindji.

From little things, big things grow

Within the Aboriginal community, word of the walk-off spread quickly. In 1966 and 1967 strikes and protests sprung up at stations across the Northern Territory, led in part by organisers of the Wave Hill protest.

Australian author Frank Hardy had left Sydney in 1967 to find the ‘real Australia’ — the Australia celebrated in the poetry of earlier writers such as Banjo Paterson. Instead, he found Indigenous people being mistreated and living in what he referred to as an ‘unofficial apartheid’. After spending time with the organisers of the Wave Hill walk-off, he went back to the city, where he arranged press conferences and lobbied politicians in an attempt to bring the plight of the Gurindji people to their attention.

As the national press picked up the story, the broader Australian community began to support the action, some even making the journey to Wave Hill to offer their support to the strikers. Finally the Gurindji people were no longer alone in their cry to take back their land.

On 16 August 1975 Prime Minister Gough Whitlam ‘handed back’ 300 000 square kilometres of the Gurindji people’s traditional lands, declaring, ‘I want to acknowledge that we Australians have still much to do to redress the injustice and oppression that has for so long been the lot of Black Australians’. As a symbolic gesture, he poured sand from the river bank at Daguragu into Vincent Lingiari’s hands.

SOURCE 2 Protesters Vincent Lingiari (right) and Mick Rangiari (left) stand beside a sign made for them by the author Frank Hardy.



SOURCE 3 In this photograph, captured by Australia’s first Aboriginal press photographer, Mervyn Bishop, Prime Minister Gough Whitlam pours sand into the hands of Vincent Lingiari to mark the return of the Gurindji people’s traditional lands.



22.10.2 Moves towards land rights and native title

The most significant decision on land rights and native title came from the Torres Strait Islands. Throughout the 1970s, the Queensland Government, which administered the Torres Strait Islands, had indicated to Islander peoples that although they occupied their traditional lands, they were not the legal owners of them.

The Mabo decision

In 1982 a group of people from Mer Island, in the eastern part of the Torres Strait, challenged the right of the government to prevent them from using their lands. They took their case to

the Queensland Supreme Court. The group was led by Eddie Koiki Mabo. After the court ruled against them, the Meriam Islanders appealed to the High Court of Australia. On 3 June 1992 the High Court made a historic ruling: the Meriam people of the Torres Strait *did* have **native title** over their traditional lands. The ‘Mabo decision’, as it became known, was important for all Australian Aboriginal and Torres Strait Islander peoples because it recognised under law that European settlement of Australia did not automatically wipe out native title. At the same time, it created some confusion as to how decisions on native title should be made.

SOURCE 4 Mer Island, the traditional land of the Meriam people, and subject of the Mabo case, was known as Murray Island to white settlers.



Who was Eddie Mabo?

The man who led the Meriam Islanders to victory was born on Mer Island in 1936 and had no formal education beyond primary school. He had become politically active in the 1970s, but his views on the importance of native title only became clear during a conference he attended at James Cook University in 1981. At this conference, titled Land Rights and the Future of Australian Race Relations, Mabo was exposed to some of the leading minds dealing with the complexities of native title, many of whom would become his supporters after he launched his landmark case in 1982. He would continue fighting for land rights until his death a decade later.

native title a ‘bundle of rights’ of First Nations people to possess land they traditionally owned and continue to occupy

SOURCE 5 In this ‘manifesto’, Eddie Mabo states some of his aims in launching a native title case against the Queensland Government in 1981.

My name is Edward Mabo, but my island name is Koiki. My family has occupied the land here for hundreds of years before Captain Cook was born. They are now trying to say I cannot own it. The present Queensland Government is a friendly enemy of the black people as they like to give you the bible and take away your land. We should stop calling them boss. We must be proud to live in our own palm leaf houses like our fathers before us.

DID YOU KNOW?

The Mabo decision meant that the High Court recognised that native title existed under Aboriginal and Torres Strait Islander peoples’ customary law that had existed in Australia prior to 1788.

Native title

The *Native Title Act 1993* was the federal government’s way of clarifying the law relating to the Mabo case and providing the legal means to deal with future land rights claims. To succeed in a claim, Aboriginal and Torres Strait Islander peoples had to prove they have had a ‘traditional connection’ with the land since 1788,

and that their interests had not been ‘extinguished’ (overridden) by the granting of other rights. According to the Act, those who believed they had a valid claim must apply to the Native Title Tribunal, which would work with Aboriginal representative bodies, as well as land councils, mining companies and other interested parties, to negotiate claims under the direction of the Federal Court.

DID YOU KNOW?

To date, around 15 per cent of Australia has been legally recognised as belonging to Aboriginal or Torres Strait Islander peoples under native title claims.

The Wik case

Since settlement, the Australian government had granted leases to **pastoralists** so they could raise herds of cattle or sheep on large tracts of land. These leases meant that the pastoralists could use the land but they did not, in many cases, stop other people, many of them Indigenous, from using the land as well.

In *Wik Peoples vs Queensland*, the High Court ruled that a pastoral lease did not necessarily extinguish native title. Rather, native title rights could coexist with pastoral leases but, if First Nations rights conflicted with pastoralists’ activities, these pastoralists’ rights would prevail. This was a major blow to the Wik people, and to other Aboriginal and Torres Strait Islander groups seeking land rights. However, it was a coup for many politicians, who had been voted in by non-Indigenous Australians concerned that they might lose their land through native title claims.

SOURCE 6 Conservative politician Pauline Hanson was voted into the Queensland seat of Oxley in the 1996 federal election. She was one of the leading voices calling for land rights to be repealed following the Wik decision. In this excerpt from her first speech to Parliament in 1996, she focuses on what she saw as an unfair granting of land to people under native title.

... This nation is being divided into black and white, and the present system encourages this. I am fed up with being told, ‘This is our land.’ Well, where the hell do I go? I was born here, and so were my parents and children. I will work beside anyone and they will be my equal but I draw the line when told I must pay and continue paying for something that happened over 200 years ago. Like most Australians, I worked for my land; no-one gave it to me.

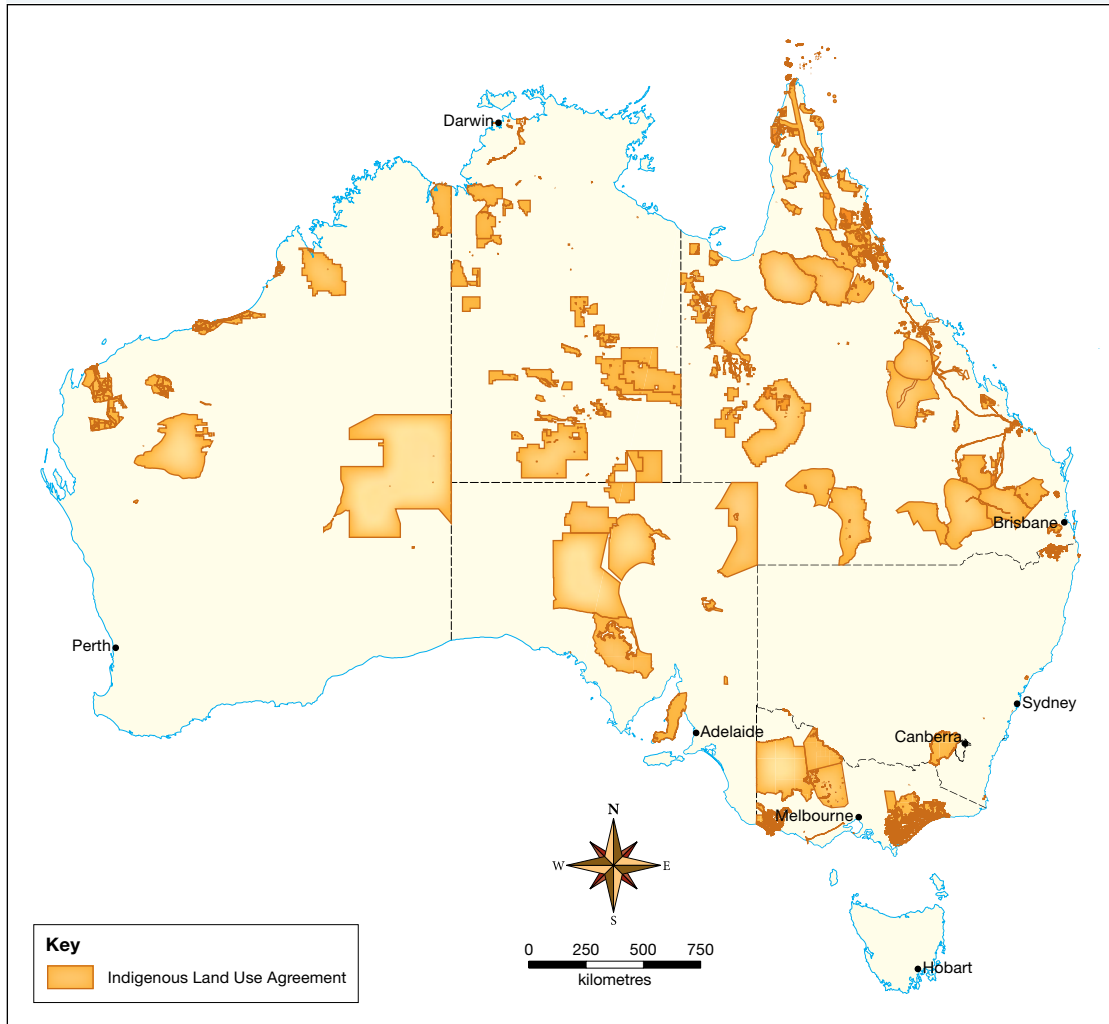
Prime Minister John Howard, declaring that ‘the pendulum has swung too far the way of Aborigines in the argument’, was ready to deliver a ten-point plan to alter the Native Title Act that would see a greater number of native title claims extinguished. Labor, the Greens and the Democrats argued that the plan needed to be softened. Both sides needed the support of Independent Senator Brian Harradine. Finally, after one of the longest debates federal parliament has ever seen, the senator threw his support behind Labor, the Greens and the Democrats. The plan was passed, but with a number of conditions, including that it would be subject to the Racial Discrimination Act, Australia’s protection against racist legislation.

Beginning in 1998, the Native Title Tribunal was given responsibility for working with native title holders and other interested parties to negotiate Indigenous Land Use Agreements (ILUAs). These agreements would allow use of the land based on terms that suited both parties. From a slow start, with only six ILUAs registered up to 2000, by 2011 more than 500 had been put in place across the country.

The distribution of these first agreements is shown in **SOURCE 7**. Since 2011, agreement numbers have increased significantly. In 2020, there were over 1300 registered agreements, covering almost one-third of the country.

pastoralist a person who runs sheep or cattle on a property

SOURCE 7 Distribution of Indigenous Land Use Agreements established from 1998 to 2020. Since 2011, the number of agreements has more than doubled, with over 2.5 million square kilometres of land and over 40 500 square kilometres of sea area registered under an agreement of some kind.



Source: © Geospatial Services, National Native Title Tribunal 14/07/2020. Reproduced with permission under Creative Commons Attribution 4.0 International license: <https://creativecommons.org/licenses/by/4.0>.

DISCUSS

Which of the events in this subtopic do you think was most significant to the land rights movement? Why do you think this is so? Do other people in your class have different opinions?

General capability: Personal and social capability

Explore more with my  HistoryAtlas

Deepen and check your understanding of this topic with related case studies and auto-marked questions.

- Rights and freedoms > Indigenous rights

22.10 ACTIVITIES

1. Many Aboriginal and Torres Strait Islander and non-Aboriginal and Torres Strait Islander artists and writers have supported the land rights movement. Using research, find a variety of these texts and explain how they persuade their audience to agree with their point of view.
History concepts: Sources, Evidence
2. Write your own narrative poem or song, based on 'Gurindji Blues', that tells the story of one of the other struggles for land rights mentioned in this subtopic. You may need to conduct further research to develop your ideas more fully.
HASS skills: Communicating and reflecting
History concept: Continuity and change

22.10 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways

LEVEL 1

Questions
1, 6, 10, 14

LEVEL 2

Questions
2, 5, 8, 11, 12, 13

LEVEL 3

Questions
3, 4, 7, 9, 15, 16, 17

Check your understanding

1. Why did the Gurindji people walk off the Wave Hill cattle station in 1966?
2. Who was Vincent Lingiari? Why is he considered a significant person in the struggle for Aboriginal rights?
3. Why did the government refuse to allow the land transfer that the Vestey family offered?
4. What did the protesters do as a result?
5. What was the 'Mabo Decision'?
6. Who was Eddie Mabo?
7. In what way might it be ironic that Eddie Mabo decided to launch his native title claim at a university named after the explorer James Cook?
8. What was the importance of the *Native Title Act 1993*?
9. What was the finding of the *Wik Peoples vs Queensland* case in the High Court? How was this finding a blow to Aboriginal and Torres Strait Islander peoples?

Apply your understanding

10. **SOURCE 1** is a ballad written by Ted Egan. It tells the story of the reasons behind the Wave Hill walk-off.
 - a. What were the main problems that the Gurindji had with their treatment at Wave Hill?
 - b. Why do you think the artist suggests buying back Gurindji land with 'flour, sugar and tea'?
 - c. Do you think this is a useful source for historians studying the Wave Hill walk-off? Explain.
11. Explain the symbolism inherent in **SOURCES 2** and **3**. How could both acts be said to represent the changing perceptions of white Australia towards the rights of Aboriginal and Torres Strait Islander peoples in the late 1960s?
12. What do the two names of Mer/Murray Island in **SOURCE 4** symbolise?
13. **SOURCES 5** and **6** express contrasting views of Aboriginal and Torres Strait Islander peoples' struggle for native title. Based on these sources, who do you believe makes a stronger case? Explain your view.
14. **SOURCE 7** depicts the Indigenous Land Use Agreements across Australia as of July 2020. Where are the greatest number of ILUAs situated? Where are the fewest? What might this suggest about First Nations peoples in these areas? Discuss with a classmate.
15. The Mabo case is considered a turning point in the struggle by Aboriginal and Torres Strait Islander peoples to secure land rights. Explain why it was so significant.
16. Why might it be difficult for Aboriginal and Torres Strait Islander peoples to show they have a 'traditional connection' to the land? Think of the type of evidence usually required to prove a case in court. Why might Aboriginal and Torres Strait Islander peoples not have this type of evidence?
17. Examine all the sources in this subtopic. Which one do you think is the most effective in conveying its message? Explain why.

For sample responses to every question, go to www.jacplus.com.au.

22.11 Reconciliation

LEARNING INTENTION

By the end of this subtopic you will be able to describe some of the political, social and moral complexities of the journey to reconciliation.

22.11.1 Perspectives on the road to reconciliation

Reconciliation — the coming together of parties divided by difference — is rarely a single event; rather, it is based on the sum of many special moments that together heal the hurt. This is particularly so when the reconciliation involves two groups of citizens separated by a long history of injustice, misunderstanding and resentment, as has been the case for Australia's Aboriginal and Torres Strait Islander peoples and those who came here after 1788.

In 1991, the federal parliament passed the Council for Reconciliation Act. As a result, the Council for Aboriginal Reconciliation was formed with representatives from Aboriginal and Torres Strait Islander groups.

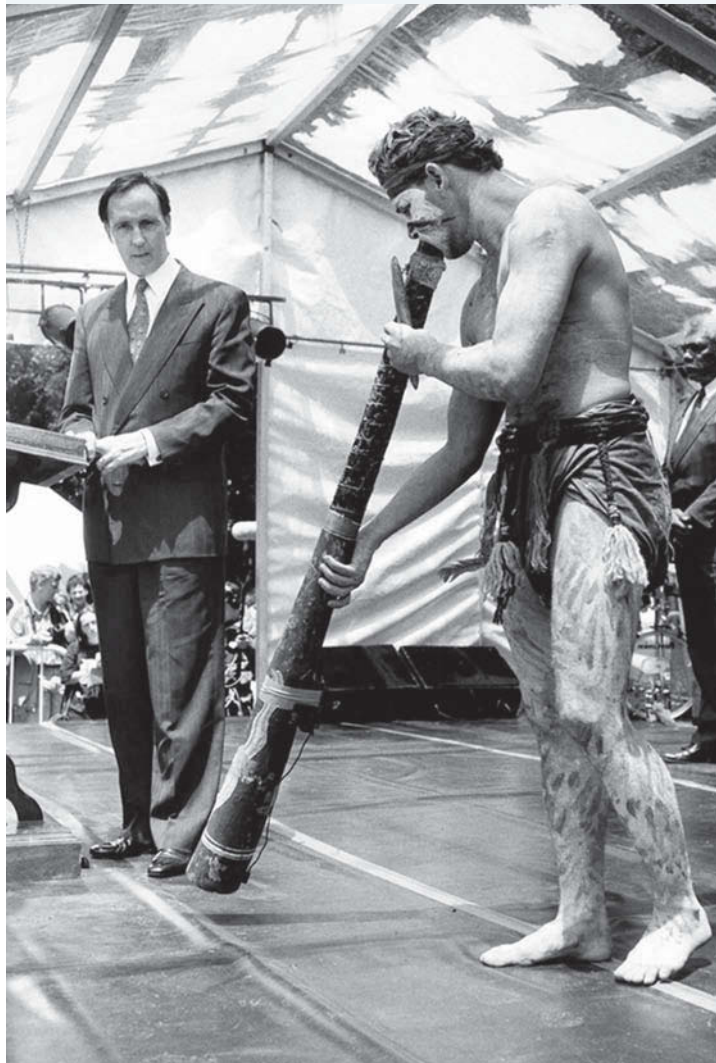
The Redfern Speech

Labor Prime Minister Paul Keating was known for his skill as a public speaker. In 1992, at the Australian launch of the International Year of the World's Indigenous People in Redfern, a Sydney suburb that was home to a large Aboriginal and Torres Strait Islander community, he made one of the greatest speeches of his career. In this speech, he spoke of the need for the nation to acknowledge the harm caused to Aboriginal and Torres Strait Islander peoples through the policies of previous governments. He said that there was nothing to fear or lose by recognising 'historical truth' and that social democracy should be extended to Aboriginal and Torres Strait Islander Australians. The Redfern Speech, as it was known, would be — for many — the first step in the long road to reconciliation between Australia's Aboriginal and Torres Strait Islander peoples and non-Aboriginal and Torres Strait Islander peoples.

Bringing Them Home

In 1995 Prime Minister Keating commissioned a report into Australia's Stolen Generations. Titled *Bringing Them Home*, the Report of the National Inquiry into the Separation of Aboriginal and Torres Strait Islander Children from Their Families (1997) outlined the process by which Indigenous children were taken from their families in the name of protection. These

SOURCE 1 Prime Minister Paul Keating delivers the Redfern Speech on 10 December 1992, to mark the beginning of the International Year of the World's Indigenous People.



children would become known as the Stolen Generations (see subtopic 22.4). Through the voices of those who had experienced separation, and the organisations established to represent Australia's Aboriginal and Torres Strait Islander peoples, the report painted a stark picture of the mistreatment of Aboriginal and Torres Strait Islander children and their families by the Aborigines Welfare Board. The report also revealed the ongoing effects of forced removal on the Stolen Generations and their families. These included a higher incidence of depression, poverty and crime, and a lower level of education. A lack of role models had also made it difficult for many members of the Stolen Generations to raise their own families. On the first anniversary of the day the report was tabled, 26 May was declared National Sorry Day.

Refusing to say sorry

While all state and territory governments and the churches publicly apologised to the Stolen Generations following the release of *Bringing Them Home*, the federal government — then led by Prime Minister John Howard — refused to apologise. This could, in part, be explained by the government's fear that admitting **culpability** would lead to a landslide of claims for compensation. But it also reflected the reluctance of many Australians to accept **moral** responsibility for the acts of previous generations. This view was shared by Howard, who claimed to support reconciliation but 'not of the apologetic, shame-laden, guilt-ridden type'. He said that millions of Australians would never entertain the notion of apologising to Australia's Aboriginal and Torres Strait Islander peoples because they would refuse to accept responsibility for past events.

SOURCE 2 Sir William Deane, a former High Court judge who had presided over the Mabo case, was appointed to the office of governor-general in 1996. In August the same year he made a passionate plea to the Australian people. It forms part of the introduction to the *Bringing Them Home* report.

It should, I think, be apparent to all well-meaning people that true reconciliation between the Australian nation and its Indigenous peoples is not achievable in the absence of acknowledgement by the nation of the wrongfulness of the past dispossession, oppression and degradation of the Aboriginal peoples. That is not to say that individual Australians who had no part in what was done in the past should feel or acknowledge personal guilt. It is simply to assert our identity as a nation and the basic fact that national shame, as well as national pride, can and should exist in relation to past acts and omissions, at least when done or made in the name of the community or with the authority of government ...

One key difference between those who were prepared to say sorry to Australia's Aboriginal and Torres Strait Islander peoples and those who were not was the way in which they viewed Australia's past. Some people believed that the arrival of white people in Australia symbolised the beginning of civilisation and progress in Australia (known as the 'three cheers' view of history), while others viewed it as the start of a brutal invasion (the 'black armband' view of history). In relation to the Stolen Generations, the former believed that the government had removed Aboriginal and Torres Strait Islander children from their homes for their own good, while the latter often claimed that this was another attempt to **eradicate** Aboriginal and Torres Strait Islander Australians, and their cultures and languages.

culpability state of guilt; being responsible or blameworthy
moral relating to right and wrong behaviour
eradicate wipe out, obliterate

SOURCE 3 John Howard presented his views on Australian history in parliament, under a motion on the topic of racial tolerance, on 30 October 1996. He would reiterate these views over the months that followed.

I profoundly reject ... what others have described, and I have adopted the description, as the black armband view of Australian history. I believe the balance sheet of Australian history is a very generous and benign one. I believe that, like any other nation, we have black marks upon our history but amongst the nations of the world we have a remarkably positive history. I think there is a yearning in the Australian community right across the political divide for its leaders to enunciate more pride and sense of achievement in what has gone before us. I think we have been too apologetic about our history in the past. I think we have been far too self-conscious about what this country has achieved and I believe it is tremendously important that we understand, particularly as we approach the centenary of the Federation of Australia, that the Australian achievement has been a heroic one, a courageous one and a humanitarian one.

22.11.2 Positive moves forward

The United Nations' Convention on the Rights of the Child was designed to legally protect the rights of all children. Australia signed the Convention in 1990. The Convention granted Indigenous children the right to life, health and education (including education about the child's own cultural identity, language and values), and the right to family. The Convention also prohibited discrimination against Indigenous children, and granted them protection from physical or mental violence, injury, abuse, maltreatment or exploitation. In 2005, the UN Committee on the Rights of the Child congratulated the authors of *Bringing Them Home* for illuminating the hardships faced by members of the Stolen Generations, but made a number of recommendations for continuing to improve life for Aboriginal and Torres Strait Islander children. The Committee also recommended that the nation address issues including the disproportionately high number of Aboriginal and Torres Strait Islander children in out of home care (such as orphanages and foster homes) and in juvenile detention centres.

Australia offers an apology

In 2007 the federal Labor Party gained power under the leadership of Kevin Rudd. In his acceptance speech, he vowed to be a 'prime minister for all Australians'. Immediately, plans were made to offer the nation's Aboriginal and Torres Strait Islander peoples a formal apology. The parliamentary year began with politicians being treated to a 'Welcome to Country' ceremony, the first ever held at Parliament House. As the sounds of a didgeridoo echoed through the halls of Parliament House, Matilda House-Williams, a Ngambri Elder, welcomed both the prime minister and the Opposition leader to her traditional lands.

SOURCE 4 Ngambri Elder Matilda House-Williams welcomes Prime Minister Rudd and Opposition leader Brendan Nelson to parliament.



On 13 February 2008, in front of parliamentarians as well as members of the public, including members of the Stolen Generations, the prime minister acknowledged the harm caused to Aboriginal and Torres Strait Islander peoples and the unfairness of past government policies. He pledged that Australia would never again allow such injustice to occur. Then he encouraged both sides of the house to work together to 'close the gap' between Aboriginal and Torres Strait Islander peoples and non-Indigenous Australians. The speech received a standing ovation, both from those within the parliament, and from the crowds watching the broadcast on large screens in every capital city. Rudd's speech was regarded by many as a great step towards achieving reconciliation. Of the 360 words that made up his apology that day, however, the crowds had come to hear only one — 'Sorry'.

Following the prime minister's speech, Dr Brendan Nelson, the Opposition leader, reiterated his party's position, stating, 'Our generation does not own these actions, nor should it feel guilt for what was done in many, but certainly not all cases, with the best intentions'. In many of the nation's capital cities, his words were drowned out by boos and hisses from the crowd.

Aboriginal leader Pat Dodson, regarded by many as the father of reconciliation, described the apology as 'a **seminal** moment in the nation's history'. While many Aboriginal and Torres Strait Islander peoples welcomed the apology, there were those who felt that the prime minister hadn't gone far enough. John Moriarty, a successful businessman who has held positions in Aboriginal Affairs departments at state and federal levels, said, 'It doesn't get down to the real crux of the issue, in my view, that people like me were taken away from their full-blooded mothers to breed out the culture. It doesn't come to that. It doesn't hit home with me'.

seminal original and influential

SOURCE 5 Prime Minister Kevin Rudd's formal apology to members of the Stolen Generations in February 2008. This speech is viewed as a key moment in the struggle for reconciliation.

Today we honour the Indigenous peoples of this land, the oldest continuing cultures in human history.

We reflect on their past mistreatment.

We reflect in particular on the mistreatment of those who were Stolen Generations — this blemished chapter in our nation's history.

The time has now come for the nation to turn a new page in Australia's history by righting the wrongs of the past and so moving forward with confidence to the future.

We apologise for the laws and policies of successive Parliaments and governments that have inflicted profound grief, suffering and loss on these our fellow Australians.

We apologise especially for the removal of Aboriginal and Torres Strait Islander children from their families, their communities and their country.

For the pain, suffering and hurt of these Stolen Generations, their descendants and for their families left behind, we say sorry.

To the mothers and the fathers, the brothers and the sisters, for the breaking up of families and communities, we say sorry.

And for the indignity and degradation thus inflicted on a proud people and a proud culture, we say sorry.

We the Parliament of Australia respectfully request that this apology be received in the spirit in which it is offered as part of the healing of the nation.

For the future we take heart; resolving that this new page in the history of our great continent can now be written.

We today take this first step by acknowledging the past and laying claim to a future that embraces all Australians.

A future where this Parliament resolves that the injustices of the past must never, never happen again.

A future where we harness the determination of all Australians, Indigenous and non-Indigenous, to close the gap that lies between us in life expectancy, educational achievement and economic opportunity.

A future where we embrace the possibility of new solutions to enduring problems where old approaches have failed.

A future based on mutual respect, mutual resolve and mutual responsibility.

A future where all Australians, whatever their origins, are truly equal partners, with equal opportunities and with an equal stake in shaping the next chapter in the history of this great country, Australia.

While much is still to be done to achieve lasting reconciliation, gestures such as the federal government's willingness to say sorry symbolise Australians' growing appreciation of this country's checkered past and their acknowledgement of the rich culture of its First Peoples.

SOURCE 6 Tom Calma, Aboriginal and Torres Strait Islander Social Justice Commissioner at the Human Rights and Equal Opportunity Commission, responds to the apology on behalf of the National Sorry Day Committee and the Stolen Generations Alliance, the two national bodies representing the Stolen Generations and their families.

Let me tell you what this apology means to me. For many years, my family has been searching in vain to find information about my great-grandmother on my father's side, who was taken at the turn of the twentieth century.

Recently, Link Up in Darwin located some information in the Archives. In a document titled 'list of half-castes in the NT' dated 2 December 1899, a government official named George Thompson wrote the following about my great-grandmother:

Half caste May is a well grown girl, is living with her mother in the black's camp at Woolwonga, her mother will not part with her, she mixes up a great deal with the Chinamen ...

My great-grandmother's ordeal was not uncommon and nor was the chilling account — 'her mother will not part with her'.

This is not about black armbands and guilt. It never was.

It is about belonging.

SOURCE 7 Prime Minister Kevin Rudd's formal apology to members of the Stolen Generations in February 2008



SOURCE 8 In Melbourne, angry crowd members turn their backs on the Opposition leader in silent protest at his refusal to say sorry.



22.11 ACTIVITY

Using all the sources in this subtopic and the information given, develop a reconciliation chronology. You can represent it as creatively as you like, but make sure you provide dates and clear annotations for the major events on the journey towards reconciliation.

HASS skills: Analysing
History concepts: Sources, Evidence

22.11 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways

LEVEL 1

Questions
1, 2, 11, 13, 14

LEVEL 2

Questions
3, 4, 5, 6, 9, 10, 12, 15, 16

LEVEL 3

Questions
7, 8, 17, 18, 19, 20

Check your understanding

1. What was the importance of Paul Keating's Redfern Speech in 1992?
2. Why was it significant that it was made in Redfern?
3. What did the 1997 *Bringing Them Home* report reveal?
4. Explain the significance of 26 May 1996.
5. Why did the federal government, led by John Howard, refuse to apologise to the Stolen Generations?
6. What legal impact did 'The United Nations' Convention on the Rights of the Child have on Aboriginal and Torres Strait Islander children?
7. What recommendations did the Committee on the Rights of the Child make regarding Aboriginal and Torres Strait Islander children in Australia?
8.
 - a. What great step towards reconciliation did Kevin Rudd take in 2008 while prime minister?
 - b. Did everyone agree with his position? How do you explain a divergence of views?

Apply your understanding

9. What evidence in **SOURCE 1** indicates Prime Minister Paul Keating's commitment to the reconciliation process?
10. Based on the excerpt from *Bringing Them Home* provided in **SOURCE 2**, do you consider it is important for a country such as Australia to acknowledge its past wrongdoings? Explain your view.
11. In your own words, and using the text in section 22.11.1 and **SOURCE 3**, define the 'three cheers' and 'black armband' views of history.
12. Using **SOURCE 4**, explain the symbolic significance of beginning the parliamentary year with a 'Welcome to Country'.
13. Read **SOURCE 5** carefully. Explain what Kevin Rudd is apologising for and who he is representing when he says 'we'.
14. Why did those watching Kevin Rudd's apology turn their backs when Brendan Nelson spoke (**SOURCE 8**)?
15. What does the fact that the Sorry speech was broadcast in many public spaces in all capital cities demonstrate about its significance? (See **SOURCES 7** and **8**.)
16. Analyse the apology (see **SOURCE 5**). Using one colour, write down the *people* he apologises to. In another colour, write down the *actions* he apologises for. In a third colour, write down any words or phrases relating to the *reasons* behind the apology. And in a fourth colour, outline *recommendations* for moving forward. Having completed this activity, decide whether, in your view, this represented a full apology, or whether there were other issues you believe Prime Minister Rudd should have addressed. Explain your opinion using some of the words you have highlighted.
17. Tom Calma's response to the apology (see **SOURCE 6**) was delivered on behalf of the Stolen Generations.
 - a. Who do you think his comments were aimed at?
 - b. Which lines were particularly significant? Explain your answers.
18. Do you think Kevin Rudd's apology is the sort of thing Paul Keating had in mind when he gave his speech at Redfern more than a decade earlier? Explain your view.
19. Write a journal article expressing your own views about the reconciliation issue. Respond to the following prompts, explaining each of your answers in detail.
 - a. Do you think the Australian government owed Aboriginal and Torres Strait Islander peoples an apology?
 - b. Was the Howard government's refusal to apologise the right decision or the wrong decision?
 - c. Did Kevin Rudd's apology go far enough? Did it go too far?
 - d. What barriers need to be broken down before reconciliation can truly be said to have been achieved?
20. Using evidence from a range of sources in this subtopic, construct a case that argues that the road to reconciliation has not been not an easy one.

For sample responses to every question, go to www.jacplus.com.au.

22.12 Fighting for equity

LEARNING INTENTION

By the end of this subtopic you will be able to explain the ways in which life for Aboriginal and Torres Strait Islander peoples has improved, and identify the ways it still lags behind expectations targets.

22.12.1 The Northern Territory National Emergency Response

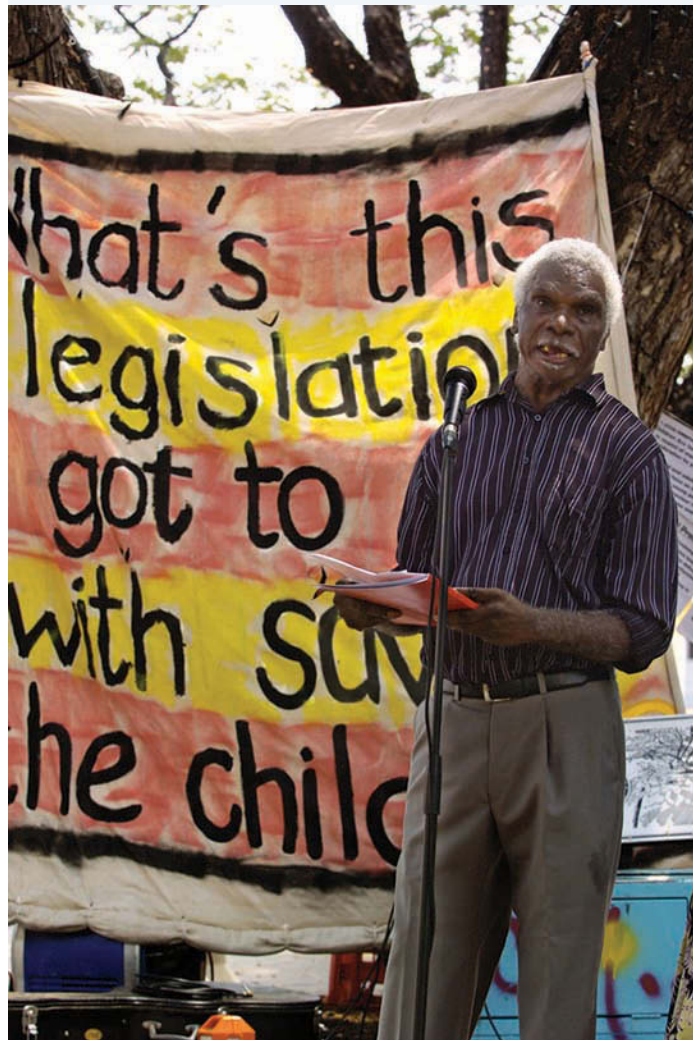
Australia's Aboriginal and Torres Strait Islander peoples lost much of what was theirs from the arrival of European settlers in 1788. Over the next 150 or so years, Aboriginal and Torres Strait Islander peoples experienced injustice, even racist hostility, from those who had taken their land, removed them from their cultures and languages, and denied them their civil and human rights. While federal government policies such as Closing the Gap aim to redress many inequities, legislation such as the Northern Territory Emergency Response in 2007 intervened in Aboriginal peoples' lives and placed restrictions on their rights and freedoms.

On 15 June 2007 the Board of Inquiry into the Protection of Aboriginal Children from Sexual Abuse released a report titled *Little Children Are Sacred*, which indicated that child sexual abuse was rampant in many remote Indigenous communities. The Howard government responded by suspending the Racial Discrimination Act in relation to these communities and announcing emergency measures designed to protect Indigenous children. The Northern Territory Emergency Response (NTER) included sending soldiers and police into the Northern Territory, banning alcohol and restricting the ways in which community members could spend their welfare cheques (a practice known as income management). The 'intervention', as it came to be known, was supported by the Australian Labor Party but caused controversy within the wider Australian community. Supporters claimed that such strict measures were required to protect children within remote communities while others claimed that it was a racist policy and another invasion of Indigenous lands.

The complexities of this issue highlight many of the difficulties that still accompany decisions made by the Australian government in relation to Aboriginal and Torres Strait Islander peoples' rights.

Opinions on the worth of the intervention remain divided. As shown in **SOURCE 2**, many Aboriginal Elders and other Australians abhorred the lack of consultation with Aboriginal people, especially those directly affected.

SOURCE 1 The government's intervention in the Northern Territory: a necessary step to protect children or racial discrimination? This photograph, taken in 2007, shows Bagot (Darwin) council chairman James Gaykamangu speaking against the policy at the National Day of Action.



TO THE PEOPLE OF AUSTRALIA 7 FEBRUARY 2011

We are the people of the land. The land is our mother. For more than 40 000 years we have been caring for this land. We are its natural farmers.

Now, after so many years of dispossession, we find once again we are being thrust towards a new dispossession. Our pain and our fear are real. Our people are again being shamed.

Under the intervention we lost our rights as human beings, as Australians citizens, as the First People of the Land. We feel very deeply the threat to our languages, our culture and our heritage. Through harsh changes we have had removed from us all control over our communities and our lives. Our lands have been compulsorily taken from us. We have been left with nothing.

The legislation under which we now live does not comply with international law. It is discriminatory. We are no longer equal to other Australians. We are no longer equal to you.

As people in our own land, we are shocked by the failure of democratic processes, of the failure to consult with us and of the total disregard for us as human beings. We demand the return of our rights, our freedom to live our traditional lives, support to develop our economic enterprises to develop jobs and to work towards a better future for all our peoples.

So extreme have been the actions against our people that we must appeal to all people of Australia to walk with us in true equality. Speak out and help to put an end to the nightmare that Northern Territory Aboriginal people are experiencing on a daily basis.

Some Aboriginal commentators and activists gave their conditional support to the policy, citing its benefits for women and children against a 'wrong-headed Aboriginal male ideology'. In 2011, after more than three years of the intervention, Central Australian Aboriginal leader Bess Price told ABC television:

I am for the intervention because I've seen progress. I've seen women who now have voices. They can speak for themselves and they are standing up for their rights. Children are being fed and young people more or less know how to manage their lives. That's what's happened since the intervention.

Cape York Aboriginal leader Noel Pearson said:

I'm in agreement with the emphasis on grog and policing. I'm in agreement with attaching conditions to welfare payments. But the difference between the proposals that we've put forward to the government and the proposals announced by Minister Brough ... a difference in that we would be concerned that those people who are acting responsibly in relation to the payments they receive, should continue to exercise their freedoms and their decisions ... we should only target cases of responsibility failure.

In terms of human rights, Australian organisations such as Australians for Native Title and Reconciliation (ANTaR) criticised the suspension of the Racial Discrimination Act, arguing the protection of children could have been achieved without its suspension. Despite some amendments made in 2010, concerns remained about the implementation of 'special measures' taken by the government to 'protect' communities at the heart of the intervention. A delegation of Northern Territory Aboriginal leaders met with the United Nations High Commissioner for Human Rights in 2011 to express their view on the discrimination that had ensued under the implementation of the intervention, and found a sympathetic ear. Despite this, the Rudd and Gillard governments continued much of the work done in the Howard government years when they introduced the *Stronger Futures in the Northern Territory Act 2012*. This Act was designed to maintain tight controls over Aboriginal peoples' use of alcohol and money. Like its predecessor, it has been criticised for not taking into account the principles of the Declaration on the Rights of Indigenous Peoples, particularly the principle of self-determination. The Stronger Futures Act will remain in force until 2022.

22.12.2 Closing the gap

In March 2008, the then Australian government and Opposition signed the Close the Gap Statement of Intent, committing to closing the health and life expectancy gap between Aboriginal and Torres Strait Islander peoples

and non-Indigenous Australians by 2030. The 2019 Closing the Gap report, like those before it, revealed a mixed bag in terms of progress towards the targets set in 2008. While gains had been made in the life expectancy for both men and women over this period, the goal of ‘closing the gap’ between Indigenous and non-Indigenous Australians was not on track, with Indigenous Australians living in remote and very remote parts of the country showing the poorest health outcomes.

In March 2019, the Council of Australian Governments (GOAG) entered into a formal partnership with the Aboriginal and Torres Strait Islander Peak Organisations and agreed to form the Joint Council on Closing the Gap. It is hoped that this council will be able to more effectively develop solutions for closing the gap by better understanding the needs of Indigenous communities.

SOURCE 3 Extract from Close the Gap statement 2008

Our challenge for the future is to embrace a new partnership between Indigenous and non-Indigenous Australians. The core of this partnership for the future is closing the gap between Indigenous and non-Indigenous Australians on life expectancy, educational achievement and employment opportunities. This new partnership on closing the gap will set concrete targets for the future: within a decade, to halve the widening gap in literacy, numeracy and employment outcomes and opportunities for Indigenous children; within a decade, to halve the appalling gap in infant mortality rates between Indigenous and non-Indigenous children; and within a generation, to close the equally appalling 17-year life gap between Indigenous and non-Indigenous when it comes to overall life expectancy.

Life expectancy and child mortality

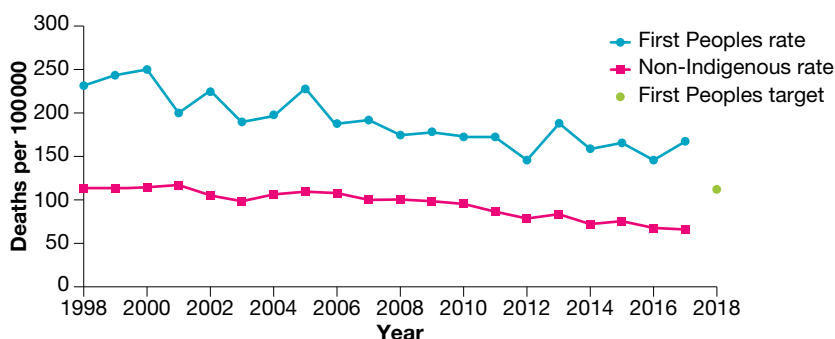
The target to close the gap in life expectancy between Aboriginal and Torres Strait Islander peoples and other Australians by 2030 is not on track. Life expectancy for First Nations men born between 2015 and 2017 is estimated to be 71.6 years, 8.6 years less than non-Indigenous men. For First Nations women, life expectancy is 75.6, 7.8 years less than non-Indigenous women. On a positive note, mortality rates from chronic and circulatory diseases have declined significantly in the Aboriginal and Torres Strait Islander population since 1998, but cancer mortality rates are rising; between 2006 and 2017, there was a 25 per cent increase in cancer death rates for Aboriginal and Torres Strait Islander patients, with deaths from cancer exceeding those for circulatory diseases within this population for the first time in 2017.

The target to halve the gap in the infant mortality rate among the Aboriginal and Torres Strait Islander population by 2018 was not achieved. While the rate of infant mortality within this population has declined by 10 per cent since 2008, it has declined at a slower rate than within the non-Indigenous population. However, as a result of health campaigns, immunisation rates for Aboriginal and Torres Strait Islander children by the age of five have continued to rise, and in 2018 were higher than rates of immunisation of non-Indigenous children.



int-6712

SOURCE 4 Child mortality rates by First Peoples status: NSW, Qld, WA, SA and the NT combined, 1998–2017. This graph shows the decline in Aboriginal and Torres Strait Islander infant mortality since 1998.



Source: ABS and AIHW analysis of National Mortality Database.

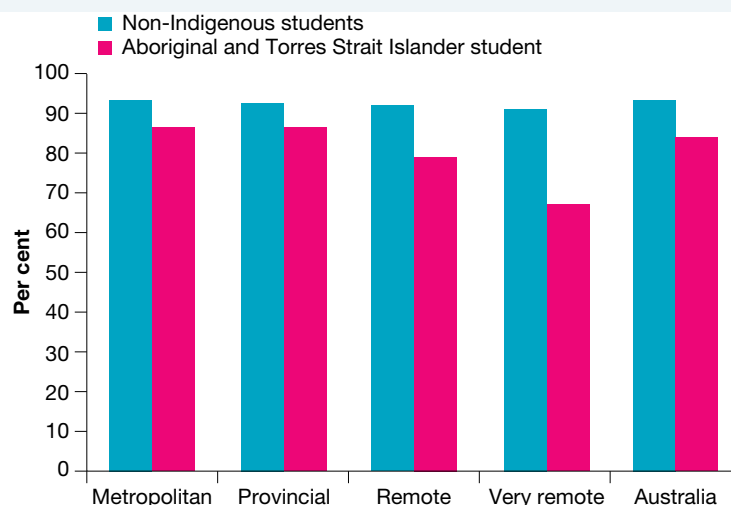
Education and employment

Progress is mixed in the key target areas of education and employment. The share of Indigenous children at or above minimum standards in reading at Years 3 and 5, and in numeracy at Years 7 and 9, has improved and

the gap has narrowed between 2008 and 2017, although the target of halving the gap was not met. Attendance at school is also lower than expected, with the attendance of First Nations students in Year 10 at 73 per cent, compared with 90 per cent attendance for non-Indigenous students at the same year level. However, an increasing proportion of Aboriginal and Torres Strait Islander students are completing Year 12 or its equivalent across all states and territories, up by 15 per cent in major cities to 74 per cent in 2016, with the largest gains seen in remote and very remote areas. In very remote areas, Aboriginal and Torres Strait Islander peoples' rate of attainment increased from just 23 per cent in 2006 to 43 per cent in 2016. The overall retention rate was 59.8 per cent, compared with 85.5 per cent for non-Indigenous Australians. In 2017, this increased again to 62.4 per cent for Aboriginal and Torres Strait Islander peoples, compared with 86 per cent for the non-Indigenous population. This success in completion rates means that the target to halve the gap by 2020 is on track. However, the target to halve the gap in employment by 2018 was not met, with the employment rate showing no improvement, and the gap between Indigenous and non-Indigenous Australians widening by 1.5 per cent between 2008 and 2018.

int-6713

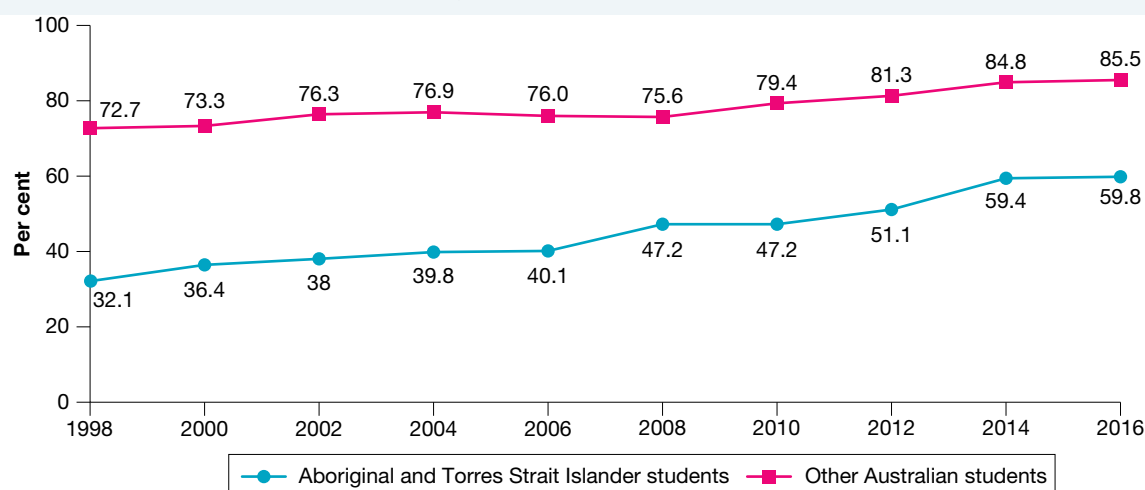
SOURCE 5 Graph showing student attendance rates of Aboriginal and Torres Strait Islander peoples compared to non-Indigenous Australians



Source: Australian Curriculum, Assessment and Reporting Authority.

int-6714

SOURCE 6 Graph of retention rates of Aboriginal and Torres Strait Islander students for Year 7 to Year 12



Source: ABS Schools, 2018.

22.12.3 Responding to inequity

It can be demonstrated from the Closing the Gap reports since 2008 that Aboriginal and Torres Strait Islander peoples' quality of life lags behind that of non-Indigenous Australians. The interrelated elements of health, education and employment have an impact on the cultural, physical and social wellbeing of Australia's First

Peoples and thus their rights and freedoms. The federal and state governments of Australia must work in partnership with Aboriginal and Torres Strait Islander bodies and other organisations to effect change. The federal government cites its Indigenous Advancement Strategy, its Better Start to Life approach, its Remote School Attendance Strategy and its Community Development Programme as positive strategies and programs for improvement. Other government-funded schemes and not-for-profit organisations can all play a role.

SOURCE 7 The Australian government's Visiting Optometrist Scheme (VOS) works in remote communities in the Northern Territory performing eye checks. While Indigenous children are five times less likely to have eye problems than non-Indigenous children, by the time they reach adulthood, Indigenous people are six times more likely to have vision problems than other Australians.



SOURCE 8 Programs such as the NT School Nutrition Program seen in action here at Papunya School in the Northern Territory aim to improve both the nutritional health and the school attendance rate of Aboriginal children.



22.12 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways

LEVEL 1

Questions
1, 2, 3, 4, 11, 12, 13

LEVEL 2

Questions
5, 6, 7, 8, 14, 15, 16, 18

LEVEL 3

Questions
9, 10, 17, 19, 20, 21, 22

Check your understanding

1. What was the initial trigger for the 2007 government intervention?
2. Which part of Australia did the intervention affect?
3. Which existing legislation had to be suspended in order for the intervention to proceed?
4. What were some of the provisions of the new legislation?
5. Who supported the intervention?
6. When was the Close the Gap Statement of Intent signed and what commitment did it make?
7. What is the 'gap' that must be closed?
8. Indicate whether each of the following statements is true or false.
 - a. Aboriginal and Torres Strait Islander peoples' life expectancy is lower than that of non-Indigenous Australians.
 - b. The target to halve the infant mortality rate of Aboriginal and Torres Strait Islander infants by 2018 was met.
 - c. The proportion of Aboriginal and Torres Strait Islander people students completing year 12 is decreasing.
9. What interrelated elements have an impact on the cultural, physical and social wellbeing of Australia's First Peoples?
10. List some of the different government strategies and programs that form part of the Australian government's response to reducing inequities for Aboriginal and Torres Strait Islander peoples.

Apply your understanding

11. A criticism was made that the Northern Territory National Emergency Response Bill contained over 200 pages but did not mention the word 'child' or 'children' once. How does **SOURCE 1** relate to this fact?
12. What arguments are put in **SOURCE 2** against the intervention?
13. What other evidence would you need to gain a balanced view of the intervention?
14. Study **SOURCE 3**. Which parties were involved in the Closing the Gap Statement of Intent?
15. Which state of Australia is not captured in the data in **SOURCE 4**? How might this affect its validity in terms of the representative nature of its data?
16. What are three statements you could justify making based on the data shown in **SOURCE 5**?
17. What trend is visible in the graph shown in **SOURCE 6**?
18. The images in **SOURCES 7** and **8** show different aspects of health inequity that relate to Aboriginal and Torres Strait Islander groups.
 - a. What are these aspects?
 - b. What impact might these images have on non-Aboriginal and Torres Strait Islander peoples who view them?
 - c. What impact do they have on you?
19. To what extent do you believe that the Northern Territory intervention represents a continuation of the restriction of Aboriginal peoples' rights and freedoms?
20. Using what you have learned in this subtopic, create a mind map that shows the challenges faced by Aboriginal and Torres Strait Islander peoples today. Consider aspects such as health, education and employment and show how they are interrelated.
21. Based on continuing increased rates of Aboriginal and Torres Strait Islander students completing year 12, what are some of the possible effects for the future of Aboriginal and Torres Strait Islander peoples?
22. Using the information and sources in this subtopic, write 400 words on the trends and patterns that are evident in the Closing the Gap initiative.

For sample responses to every question, go to www.jacplus.com.au.

22.13 The struggle continues

LEARNING INTENTION

By the end of this subtopic you will be able to identify how the achievements of Australia's Aboriginal and Torres Strait Islander peoples relate to changes in recognition for indigenous peoples around the world.

22.13.1 Aboriginal and Torres Strait Islander peoples in the twenty-first century

The struggle for Australia's Aboriginal and Torres Strait Islander peoples is far from over. Major inequities still exist between Aboriginal and Torres Strait Islander peoples and non-Indigenous Australians, and the nation continues to debate fundamental issues, from land rights to the treatment of Aboriginal and Torres Strait Islander prisoners and what it means to be Indigenous. In recent years, however, there have been major improvements in the recognition of the rights of Indigenous peoples both in Australia and in the rest of the world. This is thanks to the work of Aboriginal and Torres Strait Islander leaders and activists, past and present, whose words and actions continue to influence policymakers.

Australia's Aboriginal and Torres Strait Islander population is projected to increase by more than one-third to reach between 907 800 and 945 600 people by 2026, according to the Australian Bureau of Statistics. Projected figures are based on assumed higher than average levels of fertility and improvements in life expectancy. This represents a 2.2 per cent projected growth per year compared to a projected annual growth rate of 1.6 per cent for the total Australian population over the same period.

Like the total Australian population, the Aboriginal and Torres Strait Islander population is ageing. The proportion of Aboriginal and Torres Strait Islander children aged 0–14 years is projected to decline from 36 per cent of the population in 2011 to between 31 per cent and 33 per cent in 2026, while the proportion of

persons aged 65 years and over is projected to increase from 3 per cent to between 6 per cent and 7 per cent. These projections will need to be taken into account in future government policies.

What does it mean to be a First Nations person today?

The definition of First Nations Australian has changed over time. Older definitions referred to skin colour or the amount of Aboriginal blood a person was said to have. Today, a person is entitled to be identified as First Nations if they:

- are of Aboriginal or Torres Strait Islander descent
- identify themselves as being of Aboriginal or Torres Strait Islander origin
- are accepted as such by the community with which they associate.

SOURCE 1 Author Nicole Watson describes what it was like to grow up as a light-skinned Indigenous person.

I belong to the Birri Gubba People of central Queensland, even though I live in Sydney. I have blonde hair and blue eyes; characteristics that are irrelevant to my identity as an Aboriginal person. I never chose that identity. Rather, it was a bequest from the people who reared me — my strong-willed European Australian mother and my fiery Aboriginal father ...

... Throughout my teens, more than one observer casually raised the apparent clash between my light features and my Aboriginal identity. Such comments always drew a flash of pain on my father's face. As an adult, I can only imagine how horrible it must have been for Dad to hear the paternity of his child being questioned so audaciously. I still marvel at the incredible privilege that lurked behind those obtuse comments.

When strangers question my identity, they question the adults who grew me. They question the choices that were made for me and perhaps, even the love that my family gave to me, and continue to give. As painful as such interrogations have been, they will never shake my identity. I know who I am. But I do wonder what motivates the likes of Andrew Bolt [a journalist who was found guilty of discrimination for criticising people who appear Caucasian but identify primarily as Indigenous]. What dark insecurities fester in his psyche that he has a desperate need to assault the humanity of strangers?

Between 1991 and 2001 the number of people who identified as Aboriginal or Torres Strait Islander (or both) on the national census rose dramatically — from 351 000 to 517 000. This increase then was due, it is believed, to census officers' increased access to Indigenous communities and to the greater levels of acceptance for people to identify as Indigenous.

Some people view the growing number of people who identify themselves as Aboriginal and Torres Strait Islander as a positive sign. They believe it represents a growing pride in First Nations Australia. However, there are those who have questioned the motives of people who identify as Indigenous when they have a mixed heritage. These critics have implied that identifying as Indigenous may be based on a desire to profit from this identity — a claim that is rejected by Aboriginal and Torres Strait Islander leaders. Articles written by journalist Andrew Bolt, which criticised people who appear white but identify as Aboriginal, were the subject of a racial discrimination trial in 2010, launched by nine prominent Aboriginal people mentioned in the articles.

SOURCE 2 First Nations plaintiffs celebrate victory after journalist Andrew Bolt is found guilty of breaching the Racial Discrimination Act in the articles 'It's so hip to be black' and 'White fellas in the black'.



DID YOU KNOW

According to legal historian John McCorquodale, since the time of white settlement, governments have used 67 classifications, definitions or descriptions to decide who is Aboriginal.

22.13.2 The rights of indigenous peoples

In the twenty-first century the United Nations has taken a more active interest in supporting the rights and freedoms of indigenous peoples around the world. Of particular importance are agreements such as the International Covenant on Civil and Political Rights (ICCPR) and the Committee on the Elimination of Racial Discrimination (CERD), which has made it very clear that a ‘hands-off’ approach to indigenous rights is no longer enough. In some cases, CERD has used an ‘Urgent Action Procedure’ to pressure countries, including New Zealand and the United States, to recognise and respect the land rights of their First Nations peoples.

The most decisive action taken by the United Nations in relation to indigenous peoples was the creation of the Declaration of the Rights of Indigenous Peoples in 2007 (see **SOURCE 3**). The Declaration was developed over two decades with the input of indigenous representatives from around the world, and in direct response to requests brought to the UN Working Group on Indigenous Populations (WGIP). It embodies the rights and freedoms fought for by the world’s indigenous peoples throughout the twentieth century. Although the articles of the Declaration are not legally binding, the Declaration is a very important symbol, particularly for nations attempting to reconcile with their indigenous peoples.

The right to self-determination

Importantly, the Declaration of the Rights of Indigenous Peoples officially recognised **self-determination** as a basic right for indigenous peoples. Signatories agreed to allow their indigenous communities to govern themselves and take charge of their own economic, social and cultural matters.

self-determination the freedom for a people to determine their own course of action

SOURCE 3 Articles 1–5 of the Declaration of the Rights of Indigenous Peoples, 2007

Article 1

Indigenous peoples have the right to the full enjoyment, as a collective or as individuals, of all human rights and fundamental freedoms as recognized in the Charter of the United Nations, the Universal Declaration of Human Rights and international human rights law.

Article 2

Indigenous peoples and individuals are free and equal to all other peoples and individuals and have the right to be free from any kind of discrimination, in the exercise of their rights, in particular that based on their Indigenous origin or identity.

Article 3

Indigenous peoples have the right to self-determination. By virtue of that right they freely determine their political status and freely pursue their economic, social and cultural development.

Article 4

Indigenous peoples, in exercising their right to self-determination, have the right to autonomy or self-government in matters relating to their internal and local affairs, as well as ways and means for financing their autonomous functions.

Article 5

Indigenous peoples have the right to maintain and strengthen their distinct political, legal, economic, social and cultural institutions, while retaining their right to participate fully, if they so choose, in the political, economic, social and cultural life of the State.

Only four UN countries voted against the Declaration in 2007. They were the United States, Canada, New Zealand and Australia. Mal Brough, Australia's federal Indigenous Affairs Minister at the time, explained:

We haven't wiped our hands of it, but as it currently stands at the moment, it would provide rights to a group of people which would be to the exclusion of others ... The best way of putting it is, it's outside what we as Australians believe to be fair.

It would take a change in government before Australia, under the leadership of Kevin Rudd, would sign the Declaration in 2009. This would finally give Aboriginal and Torres Strait Islander peoples the opportunity to determine their own future.

SOURCE 4 Some of the things Indigenous people believe are essential for a national organisation that represents them

'... the National Representative Body should primarily act as an **advocacy** and negotiation body, arguing independently from a considered and well researched base, for the domestic implementation of the Declaration on the Rights of Indigenous Peoples and other relevant and binding human rights provisions ...' (Public Submission 2)

'The outcomes must be our own and we cannot feel like our funding will be cut if we stand up and speak out against a government policy or program.' (Public Submission 8)

'Any national body should collaborate effectively with the Indigenous Dialogue — the Dialogue should be the key vehicle to facilitate constitutional reform and that this process be carried out under the principles of the UN Declaration such as free, prior and informed consent ...' (Public Submission 77)

'We need a balance of young people as representatives on our peak body also. It's always easy to presume we know best for our kids, but don't take the time to ask. I would like to see a balance of 50/50 men and women represented.' (Public Submission 16)

Our future in our hands

Building on the promise of the Declaration of the Rights of Indigenous Peoples, the Australian government supported the establishment of a National Congress of Australia's First Peoples. While this Congress is not the first organisation designed to represent the interests of Aboriginal and Torres Strait Islander peoples, it differs in some key ways. Based on a model proposed in the *Our Future in Our Hands* report (2009), the Congress is made up of Aboriginal and Torres Strait Islander peoples, with equal numbers of men and women, and representation from young people and members of both urban and rural communities. It is a private, not-for-profit company, meaning it does not rely on government funding.

Tom Calma, who chaired the committee charged with designing the Congress, explained, 'It is time for Aboriginal and Torres Strait Islander people to take control and set the agenda'. Establishment of the Congress was praised by national First Nations leaders, as well as international organisations such as the United Nations and Amnesty International.

22.13.3 The next steps — recognition in the Constitution

The Australian government has given a commitment to work towards the recognition of Aboriginal and Torres Strait Islander peoples in the Australian Constitution. This recognition is about acknowledging that an Indigenous culture was flourishing on this continent many thousands of years before Europeans arrived, and continues today.

The journey to constitutional change

An expert panel, which included Indigenous and community leaders, constitutional experts and parliamentarians, consulted extensively across Australia, reporting their recommendations to the prime minister in January 2012. In 2015, a Referendum

advocacy active support

Council was established to lead a national discussion on how this might be achieved. Consultations were undertaken with both Aboriginal and Torres Strait Islander peoples and non-Indigenous groups to ensure community engagement. Partners in the campaign included diverse groups in Australian society such as the Australian Broadcasting Commission, the Commonwealth Bank, BHP, Uniting Church of Australia, Amnesty International, and Carlton and Richmond Football Clubs.

In May 2017, on the 50th anniversary of the 1967 Referendum, representatives of First Nations peoples from around the country met in central Australia. The discussions that ensued resulted in the Uluru Statement from the Heart, a historic statement that proposed a way forward to Constitutional change. In June 2017, the Reconciliation Council completed its report. Federal government committees and advisory groups have since been established, but the rise of the COVID-19 pandemic halted work in early 2020. At the time of writing, the final form of the referendums that would be needed to add this recognition to the Constitution and a date for it to be put to the Australian people has not been finalised.

SOURCE 5 On 19 April 2010, at the ninth session of the United Nations' Permanent Forum on Indigenous Issues, the New Zealand government announced its support for the Declaration of the Rights of Indigenous Peoples and received a chorus of cheers from 2000 indigenous delegates in response. The announcement was followed by a traditional Māori song of thanks.



SOURCE 6 A summary of the recommendations made by the expert panel in their report of 2012

- **Remove Section 25** — which says the States can ban people from voting based on their race;
- **Remove section 51(xxvi)** — which can be used to pass laws that discriminate against people based on their race;
- **Insert** a new section 51A — to recognise Aboriginal and Torres Strait Islander peoples and to preserve the Australian Government's ability to pass laws for the benefit of Aboriginal and Torres Strait Islander peoples;
- **Insert** a new section 116A, banning racial discrimination by government; and
- **Insert** a new section 127A, recognising Aboriginal and Torres Strait Islander languages were this country's first tongues, while confirming that English is Australia's national language.

SOURCE 7 A quote from Noel Pearson, member of the expert panel and a descendant of the Bagaarmugu and Guggu Yalani peoples. He is a key advocate for constitutional recognition.

The original Constitution of 1901 established a negative citizenship of the country's original peoples. The reforms undertaken in 1967, which resulted in the counting of Indigenous Australians in the national census and the extension of the races power to Indigenous Australians, can be viewed as providing a neutral citizenship for the original Australians. What is still needed is a positive recognition of our status as the country's Indigenous peoples, and yet sharing a common citizenship with all other Australians.

SOURCE 8 Sydney Swans AFL team Indigenous players Lance Franklin, Adam Goodes and Lewis Jetta stand in the centre circle next to the letter 'R' for Recognise at the Sydney Cricket Ground ahead of the Indigenous Round in 2014.



22.13 EXERCISE

To answer questions online and to receive **immediate feedback** and **sample responses** for every question, go to your learnON title at www.jacplus.com.au.

Learning pathways

LEVEL 1

Questions

1, 4, 7, 10, 18

LEVEL 2

Questions

2, 5, 8, 11, 12, 13, 17, 19

LEVEL 3

Questions

3, 6, 9, 14, 15, 16, 20, 21, 22

Check your understanding

1. What is the projected population of Aboriginal and Torres Strait Islander peoples by 2026? What are the likely causes of this increase?
2. For a person to be considered as Indigenous, they have to meet three criteria. What are these?
3. What crime was journalist Andrew Bolt accused and found guilty of in 2010? By whom was he accused?
4. Who created the Declaration of the Rights of Indigenous Peoples 2007 and what is its purpose?

5. In your own words, explain why the Minister for Indigenous Affairs, Mal Brough, believed that Australia should not sign the Declaration of the Rights of Indigenous Peoples in 2007.
6. Did Australia eventually sign the Declaration of the Rights of Indigenous Peoples? If so, what made the difference?
7. Explain why the National Congress of Australia's First Peoples was created.
8. Why is it important that the National Congress is not government funded?
9. Explain the constitutional recognition journey in your own words.

Apply your understanding

For help determining Significance, see topic 19 History concepts and skills.

10. In **SOURCE 1**, author Nicole Watson reflects upon the experience of being a light-skinned Aboriginal Australian.
 - a. In what ways was this experience difficult for her and for her parents?
 - b. Why do you think she chose to begin this piece with the words, 'I belong to the Birri Gubba People of central Queensland, even though I live in Sydney'?
11. **SOURCE 2** depicts some of the prominent Aboriginal Australians who filed charges against journalist Andrew Bolt. Their case was ultimately successful.
 - a. How might this photograph have looked if a similar case — in which Aboriginal Australians challenged the words of a white journalist — had been held in the 1950s or 1960s?
 - b. List some of the social changes that have occurred over the past 50 years that might have contributed to the ultimate success of the case.
12. Evaluate what points in **SOURCE 3** could have given people like Mal Brough enough concern to cause him to be against signing the Declaration.
13. After reading **SOURCE 4**, make a list of ideas that Aboriginal and Torres Strait Islander peoples wanted to come out of the creation of a body that represents them as a people.
14. What is the significance of the inclusion of **SOURCE 5** in this subtopic?
15. Study **SOURCE 6**. What key words emerge and how do they sum up the movement for recognition?
16. According to Noel Pearson (**SOURCE 7**) what would be the difference between the 1967 reform to the Constitution and the proposed recognition reform?
17. Analyse **SOURCES 3** and **4** and select the sections that relate to self-determination. If these recommendations were followed, how might the lives of Aboriginal and Torres Strait Islander peoples change over the next decade?
18. Study **SOURCE 8**.
 - a. How effective is the choice of an 'R' as a symbol for the recognition campaign?
 - b. What might be the advantages and disadvantages of displaying it in this way at a popular sporting event, accompanied by Indigenous sporting stars?
19. As the Declaration of the Rights of Indigenous Peoples 2007 is not legally binding, do you think that it has any value? Explain your view.
20. Imagine you are the new chairman of the Board of the National Congress of Australia's First People. Write the speech that you would give in the opening meeting. It will include your motivations and set the agenda for your leadership.
21. Write a 250-word report that explores the significance of Australia's signing the Declaration of the Rights of Indigenous Peoples and how the Declaration relates to the rights and freedoms strived for by at least one Indigenous activist, such as Charles Perkins (subtopic 22.6), Faith Bandler or Eddie Mabo.
22. Rank all the sources presented in this subtopic in order of what you consider to be their historical significance in the struggle of Aboriginal and Torres Strait Islanders for rights and freedoms in the twenty-first century.

For sample responses to every question, go to www.jacplus.com.au.

22.14 Thinking Big research project — Needed: Social media guru!

Scenario

In this topic, you have seen how the internet has allowed ideas to spread quickly, with grassroots protests going national, or even global, very rapidly. We can only imagine how some of the movements for rights and freedoms of the past might have benefited from this sort of widespread, rapid promotion online.

You have been given a once-in-a-lifetime opportunity, and all the technology you require, to change history. Selecting a protest movement of the past and using what you know about grassroots activism today, you will develop the first protest movement ever to go online.



Task

Your task is to build a website for one of the following pre-internet (i.e. pre-1991) protest movements:

- the struggle of Aboriginal and Torres Strait Islander peoples for rights and freedoms before 1962, as considered in this topic
- the 1962 right to vote federally
- the 1967 Referendum.

You will need to learn enough about this protest movement to be able to develop a website that is both informative and engaging for would-be protesters. This means that you must also understand who these would-be protesters could be, and what would interest and motivate them to get involved.



Process

- Open the ProjectsPLUS application in the Resources for this topic. Click on the **Start new project** button to enter the project due date and set up your project group so you can work collaboratively. Working in groups of two or three will enable you to swap ideas and share responsibility for the project. Save your settings and the project will be launched.
- Navigate to the **Research forum**, where you will find starter topics loaded to guide your research. You can add further topics to the Research forum if you wish.
- Conduct research to find information and make notes to answer the following questions:
 - What was this protest movement designed to change?
 - Who were its leaders/instigators?
 - Who were its most enthusiastic followers?
 - What motivated people to join the movement?
 - What debates surround the movement, and what does this tell you about those who choose one side of the debate over the other?
 - What techniques have you used to try to corroborate your information and ensure that it is valid? The weblinks in the **Media centre** will provide a useful starting point. Remember to record details of your sources so you can create a bibliography.
- Add your research notes and source details to the relevant topic pages in the Research forum. You can view, share and comment on research findings with your group members. You can print out the **Research report** in the Research forum to easily view all the information you have gathered, if you wish.

- When you have completed your research, study some current protest websites aimed at the same target audience, and consider how they use the following elements to engage and influence the potential supporter:
 - words
 - pictures
 - colour
 - blank space
 - any other design elements you can see.
- Now design your own protest movement website, using any available web design software. Use creative design elements to create interest on your pages and ensure that information is clear and easy to follow. Your site should contain at least six pages:
 - *Home*. This is the site's landing page. It should be designed to appeal to your target demographic (that is, future protesters).
 - *Background*. This is where you need to give the potential protester a sense of when and why the protest movement began.
 - *Actions so far*. Here you should outline anything that has been fought for, and achieved, as well as other things protesters should know, such as how many people have been arrested.
 - *Future actions*. This is what the protest movement hopes to achieve in future, particularly if it grows at a rapid rate. This page gives you another chance to talk about the aims of the protest movement.
 - *Get involved*. Now that you've got your potential protesters interested, you need to give them a way to get involved. This might include sending them to a particular venue, telling them about upcoming events, or putting them in touch with the protest movement's leaders.
 - *Bibliography*. Create a reference page to detail all your source material used for the project.
- Share your completed website with your classmates and explore their websites in turn.

Resources



ProjectsPLUS Thinking Big research project — Needed: Social media guru! (pro-0206)

22.15 Review

22.15.1 Key knowledge summary

22.2 Examining the evidence

- Until the latter half of the twentieth century the voices of Aboriginal and Torres Strait Islander peoples were largely absent from discussions about Australian history.
- Attempts have been made to address this through the inclusion of a wide range of Aboriginal and Torres Strait Islander voices from a range of sources, including oral histories and accounts, reports, commentaries and stories, as well as many other sources.
- Aboriginal and Torres Strait Islander peoples as well as non-Indigenous people have contributed to the range of resources used to examine the struggle for rights and freedoms.
- Primary and secondary sources such as films, documentaries, political commentary and official documentation are all rich sources of information to examine and interrogate.

22.3 The beginnings of an Aboriginal protest movement

- During the nineteenth and most of the twentieth centuries, Australia's Aboriginal and Torres Strait Islander peoples struggled to gain rights.
- From the early twentieth century protest movements became more organised with the first Aboriginal political organisations formed in the 1920s.
- The AAPA was formed by Fred Maynard to campaign for the right for Aboriginal self-determination.
- By 1937 the Aborigines Progressive Association was formed with the intention of pushing for full citizenship and parliamentary representation. It set 26 January 1938 as the Day of Mourning protest to focus concerns about the treatment of Aboriginal peoples and to set the agenda for change for the future through a ten-point plan. This was successfully received by the prime minister, although it would be a long time before the points were turned into action.

22.4 The Stolen Generations

- During the 1800s the government believed that Aboriginal and Torres Strait Islander peoples needed to be 'protected' and the policies of this time reflected this attitude.
- The *Aborigines Protection Act 1909* gave legal control of Aboriginal and Torres Strait Islander peoples to the Boards of Protection around the country, including legal guardianship over the children.
- This policy became one of assimilation, where the government believed that the best way for Aboriginal and Torres Strait Islander peoples to assimilate, or become more like other Australians, was to remove children, sometimes forcibly, from their families and raise them in institutions or foster families. This practice continued from 1910 to 1970 and adversely affected a large number of Aboriginal and Torres Strait Islander peoples, now called the Stolen Generations.

22.5 Influence on Australia of civil rights movements abroad

- The United Nations General Assembly adopted the Universal Declaration of Human Rights (UDHR) in 1948, outlining the rights and freedoms that should be enjoyed by all people. Civil libertarian and president of the United Nations General Assembly, Australian Dr Herbert Vere Evatt, was instrumental in contributing to the UDHR.
- This declaration established the international call for universal civil rights.
- The Civil Rights Movement of the 1950s and 1960s in the United States was a program of protest against racist policies that denied African-Americans their civil rights.
- Aboriginal and Torres Strait Islander peoples found much in this movement to support and inspire them, especially non-violent methods of protest.
- Significant individuals such as Martin Luther King provided a role model for Aboriginal and Torres Strait Islander activists.
- Campaigns such as the Freedom Rides in the 1960s in the United States were adopted by people fighting for civil rights in Australia.

22.6 The Freedom Ride in Australia

- In 1965 Charles Perkins led a Freedom Ride in rural New South Wales where issues of racial discrimination had been identified.
- The media coverage of this event stimulated national and international pressure for reform, as well as launching Perkins and his colleagues as significant civil rights campaigners.

22.7 Being counted

- In 1962, due to continued pressure from civil rights campaigners and a growing awareness from the general population, a parliamentary amendment to the Electoral Act allowed Aboriginal and Torres Strait Islander peoples to vote, although it was three more years before Queensland put this into practice.
- The final area for constitutional discrimination was that Aboriginal and Torres Strait Islander peoples were still not counted in the national census and the only way to make constitutional change was to hold a referendum. In 1967 a referendum was held and there was overwhelming support for Aboriginal and Torres Strait Islander peoples to be counted in the census.

22.8 Torres Strait Islander rights and freedoms

- Torres Strait Islander people were recognised as a separate people after the *Torres Strait Islanders Act 1939*.
- Like the Aboriginal peoples, Torres Strait Islander peoples were not able to vote in federal elections until the passing of the *Electoral Amendment Act 1962* and not able to vote in state elections until 17 December 1965, when the Elections Amendment Act was passed, extending voting rights to all Aboriginal and Torres Strait Islander peoples resident in Queensland.
- Discrimination in rates of pay for Torres Strait Islanders who had served in World War II was finally redressed in 1983.
- The Torres Strait Regional Authority, established in 1994, deals with issues of special relevance to Torres Strait Islander culture and heritage, as well as the administration of a Torres Strait Development Plan.

22.9 The Aboriginal Tent Embassy

- In 1963 the Yolngu people from Yirrkala in the Northern Territory sent a bark petition to the federal parliament, starting the land rights movement which fought for the rights of Indigenous peoples to possess the traditional lands they had owned and occupied.
- Initially the Yolngu people received support for their claim protesting the government's decision to allow a mining company to mine on their traditional lands; however, a few years later they had their challenge turned down, a decision supported by the then prime minister. This angered many Aboriginal and Torres Strait Islander peoples.
- Aboriginal and Torres Strait Islander activists set up an umbrella outside parliament house in Canberra, with a sign labelling it the 'Aboriginal Embassy'.
- It was soon followed by a number of tents and came to represent Aboriginal and Torres Strait Islander peoples' desire to have the rights to determine their own futures.

22.10 Land rights and protests

- Despite the lack of success by the Yolngu people, a group of Gurindji workers from the Wave Hill cattle station went on strike to protest their working and living conditions. Led by Vincent Lingari, a Gurindji Elder, they pushed for the return of the land to their ownership.
- This picked up public support and in 1975, Prime Minister Gough Whitlam handed back 300 000 km² of the Gurindji's peoples traditional lands.
- In 1982 a group of Mer Island people from the Torres Strait, led by Eddie Mabo, challenged the right of the government to prevent islanders from using their own lands. In 1992, the Australian High Court made a historic ruling that the Meriam people of the Torres Strait did have native title. This 'Mabo decision' was extremely significant for all Aboriginal and Torres Strait Islander peoples because it recognised that European settlement did not automatically wipe out native title.
- The *Native Title Act 1993* clarified any confusion following this. It was later challenged by the Wik case and the subsequent attempt by Prime Minister John Howard to alter the Native Title Act, but this was only passed with the proviso that it is subject to the Racial Discrimination Act.

22.11 Reconciliation

- In 1992 Prime Minister Paul Keating gave what is known as the 'Redfern Speech' launching the International Year of the World's Indigenous People in Redfern, Sydney. He pledged to recognise the harm caused to Aboriginal and Torres Strait Islander peoples by previous governments and to extend them social democracy.
- In 1995 Keating commissioned a report into the Stolen Generations called *Bringing Them Home* (1997), which outlined the damage done to individuals, families and communities because of the so-called protection policies.
- Despite the creation of National Sorry Day, 26 May, and the apologies of the state governments and churches, the federal government, led by John Howard at that time, refused to apologise.
- It was not until 2008 that the federal Labor Party Prime Minister Kevin Rudd made a formal apology in Parliament House in Canberra, acknowledging the harm caused to Aboriginal and Torres Strait Islander peoples because of past government's policies and pledged for Australia to ensure that such injustices would not happen again.

22.12 Fighting for equity

- The struggle for equity continues for Aboriginal and Torres Strait Islander peoples.
- In 2007 the Howard government suspended the Racial Discrimination Act in the Northern Territory in response to a report indicating that child sexual abuse was rampant in many remote communities. Alcohol was banned from these communities and the spending of welfare cheques was restricted.
- The 'intervention' received mixed support, with some saying that it was a racist policy and others saying that it was needed.
- Other studies and reports, such as *Closing the Gap*, show that Aboriginal and Torres Strait Islander peoples are still far behind other Australians in lifestyle issues, such as life expectancy, drug and alcohol abuse, infant mortality and imprisonment rates. There have been some improvements but they are still behind the hoped-for outcomes. Education and employment data show similar gaps.
- While there have been some improvements, such as increased high school retention rates, these are still significantly behind those of non-Indigenous Australians. The government is still working to address these longstanding inequities in Aboriginal and Torres Strait Islander peoples.

22.13 The struggle continues

- The number of Aboriginal and Torres Strait Islander peoples is increasing due to higher than average fertility rates and improvements in life expectancy.
- In 2007 the United Nations created the Declaration of the Rights of Indigenous Peoples, which embodies the rights and freedoms fought for by indigenous peoples throughout the world in the twentieth century. Significantly it recognises the right to self-determination. Initially Australia refused to sign this Declaration but eventually signed in 2009.
- Currently the Australian government is working towards a referendum on changing the Constitution to recognise that an Indigenous culture was flourishing on this continent many thousands of years before Europeans arrived and that culture continues today, as opposed to *terra nullius*. This will be another step forward in the struggle for the rights and freedoms of Aboriginal and Torres Strait Islander peoples.

22.15.2 Key terms

advocacy active support

ailan kastom (island custom) the body of customs, traditions, observances and beliefs of some or all of the Torres Strait Islander peoples living in the Torres Strait area

alienate to cause someone to feel isolated or separated

assimilation the process by which a minority group gives up its own customs and traditions and adopts those of the dominant culture

Australia's First Peoples (or First Nation peoples) an inclusive term used to refer to groups that make up the Aboriginal and Torres Strait Islander communities

bipartisan supported by the two major political parties

census an official, usually periodic count of a population

culpability state of guilt; being responsible or blameworthy

embassy the residence or place of official business of an ambassador, who represents a foreign country

eradicate wipe out, obliterate

folly foolishness; lack of good sense

heritage important or enduring

iconic cultural traditions

inalienable belonging to a thing by its nature; not able to be taken away

incarceration imprisonment

integration policy requiring immigrants to publicly adopt the new country's culture while still being able to celebrate their own culture privately; a policy that recognised the value of Aboriginal and Torres Strait cultures and the right of Aboriginal and Torres Strait Islander peoples to retain their languages and customs and maintain their own distinctive communities

land rights the rights of First Nations peoples to possess land they traditionally owned and occupied

moral relating to right and wrong behaviour

native title a 'bundle of rights' of Indigenous people to possess land they traditionally owned and continue to occupy

pastoralist a person who runs sheep or cattle on a property

precedent an action or decision on which later actions or decisions might be based; a law made by a superior court that must be applied by lower courts in future cases with the same or similar facts

referendum a ballot in which people decide on an important political issue

repatriation assistance given to ex-service men and women returning to a civilian way of life

rhetoric effective and persuasive language, sometimes used to mislead

self-determination the freedom for a people to determine their own course of action

seminal original and influential

tenure the right to hold land or property

terra nullius ('land belonging to no-one') in Australia, the legal idea that since no-one was 'using' the land when the first Europeans arrived, it could be claimed by the British Crown

treaty an agreement between two or more sovereign states (countries) to undertake a particular course of action. It usually involves matters such as human rights, the environment or trade.

unconstitutional not in accord with the principles set forth in the Constitution

unfettered unrestricted

22.15.3 Reflection

Complete the following to reflect on your learning.

Revisit the inquiry question posed in the Overview:

What does it take to change the hearts and minds of a nation, so they don't just tolerate the First Nations population but respect and value them?

1. Now that you have completed this topic, what is your view on the question? Discuss with a partner. Has your learning in this topic changed your view? If so, how?
2. Write a paragraph in response to the inquiry question, outlining your views.



Resources



eWorkbook

Customisable worksheets for this topic (ewbk-6373)

Reflection (ewbk-6372)

Crossword (ewbk-6371)

Student Learning Matrix (ewbk-6362)



Interactivity

Rights and freedoms crossword (int-7663)

22.15 Review exercise

Multiple choice

1. Which of the following is correct regarding the 1962 amendment to the Electoral Act?
 - A. It allowed Aboriginal and Torres Strait Islander peoples to be counted in the census.
 - B. It allowed Aboriginal and Torres Strait Islander peoples to enrol to vote if they wished.
 - C. It allowed Aboriginal and Torres Strait Islander peoples to vote straight away.
 - D. It allowed Aboriginal and Torres Strait Islander peoples in Queensland the rights of every other state.
2. What was the reason that the government claimed that Aboriginal and Torres Strait Islander children were taken from their parents?
 - A. Because their parents could not look after them properly
 - B. To give the children a better life
 - C. To punish the children for being bad
 - D. To help the children better fit into Australian society
3. Consider the following two statements about reconciliation.
 - i. Paul Keating's Redfern speech refused to recognise the harm caused to Aboriginal and Torres Strait Islander peoples by previous governments.
 - ii. John Howard and his government refused to make an official apology to the Stolen Generations and families.
 - A. Statement (i) is true and statement (ii) is false.
 - B. Statement (i) is false and statement (ii) is true.
 - C. Both statements are true.
 - D. Both statements are false.
4. What was the goal of the Freedom Ride of 1965?
 - A. A study tour of race relations
 - B. To address the discriminatory laws in country New South Wales
 - C. To introduce some Aboriginal and Torres Strait Islander peoples to other country Australians
 - D. To help Charles Perkins make a big name for himself

Read the **SOURCE 1** an extract from Jack McGinness's speech to the Trade Union Congress 1951 on discriminatory laws in the Northern Territory, and answer the questions that follow.

SOURCE 1 Jack McGinness's speech to the Trade Union Congress, 1951 on discriminatory laws in the Northern Territory

My Union felt the best way in which this particular question could be presented to you for your support would be the personal attendance of a part-Aborigine. unaccompanied by any other delegate, so that you could readily see there was no justification for the withholding from us of what should be our inalienable right, the right to live as ordinary people, without segregation from the rest of the community. We are educated at the same schools, take our part in every sporting and industrial sphere on an equal footing with other peoples of the Territory, but because the pigmentation of our skin is dark, and we have original Australians as part of our ancestry, we are classed as something that is tainted and must be kept apart. What reason or justification is there for such an attitude on the part of the Government of this country?

I will be speaking about how the Aboriginal Ordinance affects me personally, but this effect applies to all others in the same category as myself. Possibly some of you know that because we are of Aboriginal extraction we are subject to, or come under, the Aboriginal Ordinance, which states 'That an aboriginal or half-caste cannot remain in a town or prohibited area between the hours of 6 pm and 8 am each day without a written permit issued by the Director of Native Affairs'. It rests with that individual whether you are entitled to a permit or not.

5. Which of the following is *not* the purpose of Jack McGinness's speech?
 - A. To request equal rights
 - B. To point out injustices
 - C. To request a permit to be out during the hours of 6 pm to 8 am
 - D. To discuss his personal perspective
6. Which policy most accurately reflects the attitudes behind the Aboriginal Ordinance Act?
 - A. Assimilation
 - B. Protection
 - C. Self-determination
 - D. Integration
7. Why would **SOURCE 1** be regarded as a primary source on Aboriginal and Torres Strait Islanders' rights and freedoms?
 - A. Jack McGinness identifies as an Aboriginal person.
 - B. It is from the time period studied.
 - C. It is about the Aboriginal Ordinance Act.
 - D. It is a speech.
8. Which of the following statements about the Aboriginal Tent Embassy is false?
 - A. The Prime Minister at the time was Paul Keating.
 - B. It started with the 1963 Yirrkala bark petition.
 - C. The first Aboriginal tent embassy was an umbrella outside Parliament House.
 - D. The Tent Embassy still exists today.
9. Which is the correct order for the broad government attitude reflected in policies regarding Aboriginal and Torres Strait Islander peoples from the oldest to the most recent?
 - A. Protection; assimilation; integration; self-determination
 - B. Assimilation; integration; self-determination; protection
 - C. Integration, assimilation; protection; self-determination
 - D. Protection; integration, assimilation; self-determination

10. The government's 'Intervention' in 2007 in the Northern Territory involved which of the following?
- A. Banning alcohol sales in a number of remote Aboriginal communities
 - B. Restricting the ways that some Aboriginal and Torres Strait Islander peoples could spend their welfare money
 - C. Suspending the Racial Discrimination Act
 - D. All of the above
11. According to **SOURCE 2** why should the word 'Indigenous' no longer be used to mean an Aboriginal or Torres Strait Islander person?
- A. It is being used by Aboriginal or Torres Strait Islander peoples.
 - B. It is offensive.
 - C. It robs Aboriginal and Torres Strait Islander peoples of a specific identity.
 - D. They are not indigenous.

SOURCE 2 An extract from *The Age* newspaper 1 May 2008

The use of the word indigenous to describe Australia's traditional owners has robbed them of their identity, former ATSI chairwoman Lowitja O'Donoghue says.

Call us Aboriginal, she says.

'I really can't tell you of a time when indigenous became current, but I personally have an objection to it, and so do many other Aboriginal and Torres Strait Islander people', she said.

'This has just really crept up on us ... like thieves in the night.'

She says it has become so ingrained in the vernacular that 'our people are using it now as well'.

'We are very happy with our involvement with indigenous people around the world, on the international forum ... because they're our brothers and sisters.'

'But we do object to it being used here in Australia.'

Ms O'Donoghue said the term indigenous robbed the traditional owners of Australia of an identity because some non-Aboriginal people now wanted to refer to themselves as indigenous because they were born here.

Source: *The Age*, 2 May 2008 (www.theage.com.au/national/dont-call-me-indigenous-lowitja-20080502-ge7125.html)

12. What can be concluded from **SOURCE 2** about Lowitja O'Donoghue's racial and/or cultural identity?
- A. You cannot really make a judgement from this article.
 - B. She is probably not Aboriginal because she does not have an Aboriginal name.
 - C. She does identify as an Aboriginal person as she uses the inclusive pronouns 'us' and 'we'.
 - D. You should not jump to conclusions about a racial/cultural identity.

Short answer

13. Michael Long, an Aboriginal AFL player for the Essendon football team between 1989 and 2001, is also known for his stand against racism in the AFL, helping create the football league's anti-racism code of ethics. After his retirement, in 2001 he marched from Melbourne to Canberra in the Long Walk to highlight the inequities faced by Aboriginal and Torres Strait Islander peoples, receiving wide support from many sections of both the Indigenous and non-Indigenous communities. Despite the success of his efforts, AFL players like Adam Goodes have had to continue the fight against racism.

How could you find out more about the Long Walk? Construct some questions you could use in your inquiry.

14. As part of the Freedom Ride of 1965, the riders stopped at Moree, NSW, where they made a significant impact. Charles Perkins, who was one of the leaders of the Freedom Ride, wrote about the events at the Moree swimming pool where they stood up to laws discriminating against Aboriginal and Torres Strait Islanders peoples.
- What was the purpose of the Freedom Ride's visit to Moree?
 - What, according to Perkins, was the biggest point of discrimination in Moree?
 - Describe how they addressed it.

SOURCE 3 Showdown at Moree

The next day [17 February] we began to fully investigate what was going on in Moree. We found out the Council had discriminatory laws against Aborigines who were not allowed to go inside the Council chambers, nor use the toilets. A number of hotels were not serving Aborigines.

The biggest point of discrimination was the local swimming pool. Aboriginal adults were not allowed to swim there at all. Aboriginal children were let in on a Wednesday afternoon during school hours between one and three. But then, after the school hours finished, the whistle blew and all the Aboriginal kids had to get out and only the white kids were allowed to stay. The swimming pool was the one point we thought we would hit at first ...

When we got down to the pool I said, 'I want a ticket for myself and these ten Aboriginal kids behind me. Here's the money.'

'Sony, darkies not allowed in.' replied the baths manager. The manager was a real tough looking bloke too. He frightened me.

We decided to block up the gate: 'Nobody gets through unless we get through with all the Aboriginal kids!' And the crowd came, hundreds of them. They were pressing about twenty deep around the gate.

Then the police arrived ...

The mayor ordered the police to have us removed from the gate entrance. They took hold of my arm and the struggle started. There was a lot of pushing and shoving and spitting. Rotten tomatoes, fruit and eggs began to fly, then the stones were coming over and bottles too ...

The crowd got ugly then. One of our students ... was punched to the ground by one of the tough boys who did not like what we were doing.

The mob from the hotel across the road decided that they were going to show these university students and niggers and black so-and-so's whose town this was. They came over and did most of the kicking, throwing and punching, and the spitting ... The situation looked very bad. The police then said, 'Right, we'll let them in.'

They let the kids in for a swim and we went in with them. We had broken the ban! Everybody came in! We saw the kids into the pool first and we had a swim with them. The Aboriginal kids had broken the ban for the first time in the history of Moree ...

It was a wonderful moment.

Source: Charles Perkins 1975, *A Bastard like Me*, Sydney: Ure Smith, pp. 87–91

15. **SOURCE 3** is an anecdote in that it relies on Charles Perkins's memories and it shows only his point of view. How could historians substantiate his account of the Moree pool incident?
16. **a.** In what ways do **SOURCES 2** and **3** support or challenge the view that civil rights resistance strategies have been used effectively in Australia for at least the past 50 years?
- b.** In what ways can Charles Perkins be said to have led the way for people like Michael Long?
17. Using the timeline and the information provided in this topic, select what you think are the top five events that have had the most significance in Aboriginal and Torres Strait Islanders' struggle for their rights and freedoms and place them in order from one being the most significant to five being the least. After doing this, write an extended paragraph, explaining your choices.

This is a summary of the digital resources you will find online for topic 22 to help support your learning and deepen your understanding. When you see these icons next to an image or paragraph, go to learnON to access video eLessons, interactivities, weblinks and other support material for this topic.

22.1 Overview



Video eLesson

- Rights and freedoms (eles-2605)



Interactivity

- A timeline of the struggle for rights and freedoms (1945–present) (int-6707)

22.3 The beginnings of an Aboriginal protest movement



eWorkbook

- Australia Day — celebration or mourning? (ewbk-6363)

22.4 The Stolen Generations



Weblink

- Archival copy of the Aborigines Act 1905 (WA)
- Stolen Generations (South West Aboriginal Land & Sea Council)

22.5 Influence on Australia of civil rights movements abroad



eWorkbook

- Civil rights around the world (ewbk-6364)



Video eLessons

- Martin Luther King at the Washington civil rights rally (eles-2606)
- Lyndon B. Johnson announces the passing of the Civil Rights Act (eles-2607)



MyWorld History Atlas

- Civil rights movements

22.6 The Freedom Ride in Australia



eWorkbook

- The Freedom Ride — impact (ewbk-6365)



Interactivity

- The route the Freedom Riders followed (int-6709)

22.7 Being counted



eWorkbook

- Being counted (ewbk-6366)



Interactivity

- The rights of First Nations peoples in different states prior to the 1967 Referendum (int-6710)

22.9 The Aboriginal Tent Embassy



eWorkbook

- An artist's impression (ewbk-6369)



Interactivity

- An artist's impression of the Aboriginal Tent Embassy, 1972 (int-6711)

22.10 Land rights and protests



eWorkbook

- Land rights (ewbk-6367)



MyWorld History Atlas

- Indigenous rights

22.11 Reconciliation



eWorkbook

- Understanding a historical debate (ewbk-6368)

22.12 Fighting for equity



Interactivities

- The decline in Aboriginal and Torres Strait Islander infant mortality since 1998 (int-6712)
- Attendance rates of Aboriginal and Torres Strait Islander students compared to non-Indigenous students (int-6713)
- Retention rates of Aboriginal and Torres Strait Islander students for Year 7 to Year 12 (int-6714)

22.14 Thinking Big research project — Needed: Social media guru!



ProjectsPLUS

- Thinking Big research project: Needed: Social media guru! (pro-0206)

22.15 Review



eWorkbook

- Reflection (ewbk-6372)
- Crossword (ewbk-6371)
- Student Learning Matrix (ewbk-6362)



Interactivity

- Rights and freedoms crossword (int-7663)